INVITATION TO APPLY FOR GAMING MACHINE LICENCES (SITE) IN GAUTENG

GAUTENG GAMBLING BOARD

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GAUTENG PROVINCE
ECONOMIC DEVELOPMENT
REPUBLIC OF SOUTH AFRICA

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DEFINITIONS

Unless the context indicates otherwise, the following definitions shall be applicable to the contents of this RFP.

"Act" means Gauteng Gambling Act 1995, Act no. 4 of 1995 as amended.

"Applicant" means any person who has responded to the Board's invitation to apply for a licence in terms of this RFP.

"Application" means documentation submitted in response to the RFP for a route operator licence.

"BBBEE" means Broad Based Black Economic Empowerment.

"BBBEE Act" means Broad Based Black Economic Empowerment Act 53 of 2003.

"Board" means the Gauteng Gambling Board established in terms of section 3 of the Act.

"Central Electronic Monitoring System" means the central electronic monitoring system in respect of limited payout machines contemplated in section 27 of the National Gambling Act .("CEMS")

"Independent site" means a site operator, who is not linked to a route operator and is licensed to own and operate limited payout machines on a single site and is responsible for maintaining the machines, effecting the collection of money and paying the provincial taxes and levies due to the provincial licensing authorities.

"Locals" means a person with a primary residence in the Gauteng Province.

"Market Power" means the power of a firm to control prices, to exclude competition or to behave to an appreciable extent independently of its competitors, customers or suppliers.

"National Gambling Act" means the National Gambling Act no. 7 of 2004 as amended.

"National Regulations" means the Regulations promulgated in terms of National Gambling Act.

"Phase" means the roll out process commenced with this RFP culminating in the roll out of the first 5 000 machines in the Province.

"Province" means Gauteng Province.

"Regulations" means Gauteng Regulations promulgated in terms of section 84 of the Act.

"RFP" means request for proposal for a gaming machine licence.

"Successful applicants" means applicants who have met the licensing criteria in terms of this RFP and to whom the Board has awarded a licence.

INTRODUCTION

In terms of the Act, and in particular Section 19 thereof, and the Regulations made thereunder the Gauteng Gambling Board ("the Board") invites applications for route operator licences.

All interested parties are invited to submit their applications in response to this invitation, provided that the applications meet the assessment criteria set out in this invitation.

Each application must fully comply with all the requirements identified in this invitation. Interested parties may seek clarification of the requirements, provided that such requests are submitted in writing to the offices of the Board. Applications which do not meet all the requirements shall be disqualified and no further correspondence from the Applicant shall be entertained by the Board.

PURPOSE OF INVITATION

The purpose of this document is to provide all interested parties with an indication of the process and criteria applicable to the awarding of route operator licences. Also, it will provide interested parties with clear guidelines on the information required by the Board to be included in an applicant's application.

LICENSING OBJECTIVES

The Board intends, amongst others, to achieve the following objectives through the introduction on limited payout machines in Gauteng: -

- Enhance economic growth and development in the Province through the stimulation of small and medium size businesses;
- Introduce new entertainment and recreational facilities spread throughout the Province;
- Contribute to the eradication of incidents of illegal gambling;
- Collect additional tax revenue for the Province; and
- Promote the ideals of broad based black economic empowerment.

TIMETABLE

The timetable below provides an indication of the critical roll out path of the limited payout machines. The Board reserves the right to change the timetable as and when necessary at its discretion without providing reasons:

- publication and invitations of comments on the draft RFP in respect of site licences – 06 January 2009 – 20 January 2009;
- publication of the final invitation and submissions of applications for site licences – 16 February 2009;
- route operators will each be entitled to submit twenty (20) site licence applications (this number may be reviewed from time to time by the Board) on the following dates;
    - 02 March 2009 to 03 March 2009 (first batch);
    - 04 May 2009 to 05 May 2009 (second batch);
    - 03 August 2009 to 04 August (third batch);
    - 04 October 2009 to 05 October (fourth batch);
    - 07 December 2009 to 08 December 2009 (fifth batch); and
    - 01 March 2010 to 02 March 2010 (sixth batch).
- applications or batches will be accepted from all areas within the Province provided that the batches include a fair representation between sites owned or operated by PDI's and those owned or operated by non PDI's.

FORMAT OF THE INVITATION

This document is divided into the following three sections:

Section 1

- Section 1 provides general information regarding application procedures and the terms and conditions applicable to applications.

Section 2

- Section 2 provides the broad assessment criteria to be applied by the Board in awarding licences.

Section 3

- Section 3 contains the licence application form and application instructions and provides particulars of the additional submission requirements.

SECTION 1 - GENERAL

1.1 APPLICATION PROCEDURE AND FEES

Application documentation, prepared in accordance with the requirements of this invitation, must be submitted to the Board's offices together with the following:

- **A NON-REFUNDABLE** application fee of R9 300.00 per application.
- An investigation fee of R20 000.00 per application (flat fee).
- RFP documentation fee of R2 000.00 per application.

Successful applicants will in addition be required to pay applicable application and registration fees in respect of gaming machines in terms of the Regulations.

It is the responsibility of any person, before applying for a licence, to ensure that they are not disqualified to hold a licence in terms of the Act. Attention is drawn to the provisions of Section 30 of the Act in particular.

1.2 TERMS AND CONDITIONS

1.2.1 Disclaimer

- Every effort has been made to ensure that the information contained in this invitation is correct but it is the obligation of interested parties to ensure that their applications are correct and comply with the provisions of the Act in all material respects.
- In view of the above:
  - Each interested party must make its own independent assessment and investigation of the issues required to be dealt with in its application and should not rely on the adequacy or accuracy of any information in this invitation; and
  - Neither the Board, its employees nor its agents will be held liable for anything done in good faith.
- Any additional information provided to interested parties by the Board or any of its employees in connection with this invitation or the route operator licence application process will also be subject to the terms of this invitation.

1.2.2 Changes

The Board may, at its discretion, by notice in the Provincial Gazette or in writing to applicants, supplement or update any of the contents or terms and conditions applicable to the invitation. It may also change procedures, timetables, requirements and any other aspect of or in connection with matters covered in the invitation.

1.2.3 No guarantee

The Board does not guarantee that any applicant will be granted a licence. In the event of a licence being granted, the Board does not guarantee that the number of gaming machines awarded, will be the number applied for, up to the maximum of five.

1.2.4 No compensation

The Board will not, under any circumstances, be liable to compensate an applicant or any other party for any expenses or losses incurred or suffered by that applicant or party in acting upon this invitation and/or otherwise participating in the route operator licence application process.

1.2.5 Waiver of immaterial defect

The Board may waive any immaterial defect or lack of compliance with any formality in any application or application procedure.

1.2.6 **Electronic monitoring system**

It is a condition precedent of this invitation that the operation of gaming machines by a route operator, will be subject to the linking to an electronic monitoring control system contemplated in section 27 of the National Gambling Act.

1.2.7 **Distribution of profits**

The distribution of revenue between the route operator and the site licensee shall be as follows: -

- Calculation of Gross Gaming Revenue

Less: (a) Gaming tax (in terms of the Act and Regulations)
(b) CEMS monitoring fee
(c) Site Data Logger charge
(d) Insurance

Net Gaming Revenue

- **Split:**

The split shall be as follows:

- **Gaming machine licence (sites with machines not exceeding five)**

Route Operator	60% of Net Gaming Revenue
Licensed Premises	40% of Net Gaming Revenue

After ten years of operation the minimum split shall be as follows:

Route operator	55% of Net Gaming Revenue
Site	45% of Net Gaming Revenue

- **Additional gaming machine licence (sites with machines exceeding five and not more than forty)**

  The split between a route operator and site licensee shall not be less than 50% of the net gaming revenue.

Further, the sharing and distribution of revenue between the route operator and site licensee shall be contained in the approved agreement between the route operator and the site licensee submitted to the Board for approval. Accordingly the route operator and the site licensee shall not be entitled to enter into a separate revenue sharing or incentive arrangements which are not contained in the approved agreement.

1.2.8 **BBBEE**

As a public entity, the Board upholds and promotes the principles enshrined in the legislation pertaining to Black Economic Empowerment and as such, will seek to ensure commitment to, adherence and compliance to BBBEE legislative provisions.

Therefore, in addition to the other elements of BBBEE requirements the following minimum requirements are obligatory:

- The route operator shall have a minimum of 51% shareholding by previously disadvantaged individuals of which 60% shall be held by locals and of which 30% shall be held by black women. In the event that the licensed route operators' strategic operational activities are managed or directed outside the licensed entity, such entity tasked with the strategic operational activities shall comply with the requirements herein.

- At least 50% of the route operator's site licensees with machines in excess of five shall be owned or operated by previously disadvantaged individuals.

- A minimum of 50% of licensed sites (both licensed sites with machines not more than five per site and those with machines per site in excess of five) linking their machines to a route operator shall be owned, operated or controlled by previously disadvantaged individuals.

1.2.9 **Number of route operators and machines to be licensed**

The Board intends to licence up to five route operators with 1000 machines per route operator (Phase 1).

1.2.10 **Independent sites**

The Board does not intend to issue independent site licences during phase 1 of the roll out.

1.2.11 **Agreement**

All agreements between the route operator and the prospective site licensees shall be submitted by the route operator to the Board for approval before they can become binding. The Board will consider the extent to which the agreement complies with the RFP.

1.2.12 **False information and incomplete applications: -**

The Board reserves the right to refuse a proposal that:

- Contains false information; or
- Is incomplete.

1.2.13 **Prevention of monopoly**

In order to minimise incidents of monopolistic practices, the holder of a route operator licence shall not be entitled to have a financial interest in the business of the site licensee apart from the sharing of revenue as contemplated in this RFP.

1.2.14 SECTION 2 – ASSESSMENT CRITERIA IN RESPECT OF SITES

2.1 Gaming Machine Licence (sites with five machines or less)

The Board will evaluate applications using the following broad assessment criteria for sites suitable for gaming machine licence premises.

- A lawfully operated establishment providing an adult leisure facility.
- Demonstration of enforceability of the legal age restrictions to be playing of gaming machines.
- The main business of the establishment may not be the operation of gaming machines.
- The major portion of the premises shall not be used as a family residence.
- The exclusion of certain sites.
- Such other factors as the Board may deem relevant.

The factors that will be considered in evaluating an application according to the above criteria, include:

2.1.1 A lawfully operated establishment providing primarily an adult leisure facility

All activities carried on at the establishment must be perfectly legal and where applicable the establishment must be in possession of the necessary licence.

An establishment providing primarily an adult leisure facility is an establishment which concentrates on attracting the adult population to spend leisure time at it. The types of activities envisaged, but not limited to, include:

- Bars, taverns and shebeens;
- Bona fide sport and social clubs;
- Certain other premises upon which licensed gambling activities are conducted, such as bingo with more than 150 seats, bookmaker or totalizator premises; and
- Such other entertainment, leisure and recreational facilities as may be approved by the Board.

2.1.2 Demonstration of enforceability of the legal age restrictions to the playing of gaming machines

The establishment will have to demonstrate, where persons under the age of eighteen are permitted on the premises, that it will have the necessary controls in place to enforce that such underage persons are restricted from being able to play the gaming machines.

2.1.3 The main business of the establishment may not be the operation of gaming machines

The establishment will have to demonstrate that the playing of gaming machines will be a secondary or ancillary activity to the main adult leisure attraction or attractions which are offered.

In determining whether the applicant's proposed operation of limited payout machines is incidental to the primary business at particular premises, the provincial licensing authority may consider some or all the following factors:

- the floor space used for the limited payout machines as compared to the floor space used for the primary business;
- the investment in the operation of the limited payout machines as compared to the investment in the primary business;

- the time required to manage or operate the limited payout machines as compared to the time required to manage or operate the primary business;
- the gross revenue generated by the limited payout machines as compared to the gross revenue generated by the primary business;
- whether a substantial portion of the financing of the business as a whole has been provided in exchange for the right to operate limited payout machines on the premises; or
- other factors, including but not limited to the establishment's name, the establishment's marketing practices and the public's perception of the business.

2.1.4 **The location of LPM machines**

The gaming area for the location of LPM machines shall not be less than 3 square meters per LPM machine.

It will also have to be demonstrated that the placing of gaming machines will not interfere with the normal business of the establishment.

Available area will also be consideration in the number of gaming machines awarded.

2.1.5 **The major portion of the premises shall not be used as a family residence**

Where the establishment is on the same site as or forms part of a residence, the establishment shall form the major portion of the premises and shall be totally separate from the household with no shared facilities.

2.1.6 **The exclusion of certain sites**

The following categories of premises will not be licensed regardless of whether they provide an adult leisure facility.

- Cafés.
- Supermarkets.
- Liquor retail or off-sales stores.
- General dealers.
- Theatres or cinemas.
- Video arcades.
- Fast food outlets.
- Places of worship.
- Institution of learning.
- Shops and other retail outlets.
- Laundromats.
- Restaurants, hotels, bed and breakfast facilities unless such contain separate premises falling within any of the categories listed as qualifying for licensing above.

2.1.7 **Such other factors as the Board may deem relevant**

These shall include but not limited to the following:

- The maximisation of positive, and limitation of negative, social impact on the local community.
- Close proximity to: –
  - church, mosque, synagogue or other place of worship;
  - school or other institution of primary or secondary level;
  - premises where video or similar games may be played by persons including persons under the age of eighteen years; and
- Any other area that the Board may deem inappropriate for licensing

2.2 **Additional gambling machine licences (sites with machines more than five but less then forty)**

The Board will evaluate applications using the following broad assessment criteria for sites suitable for gaming machine licence premises

- A lawfully operated establishment primarily providing an adult leisure facility.
- Demonstration of enforceability of the legal age restrictions to be playing of gaming machines.
- The exclusion of certain sites.
- National Gambling Boards, national minimum licensing criteria for sites with more than five limited payout machines.
- Such other factors as the Board may deem relevant.
- The main business of the establishment may not be the operation of gaming machines.

2.2.1 All activities carried on at the establishment must be perfectly legal and where applicable the establishment must be in possession of the necessary licence.

An establishment providing primarily an adult leisure facility is an establishment which concentrates on attracting the adult population to spend leisure time at it. The types of activities envisaged, but not limited to, include:

- A sporting or social club which –
  - has more than 75 members;
  - occupies fixed premises;
  - is licensed in terms of the relevant laws relating to liquor;
  - is operated as an association not for gain; and
  - membership is non racial.
- A racecourse
- Bookmaker outlet
- Totalizator outlet
- Night club

- Hotel
- Bingo hall with more than 150 seats
- A bar licensed in terms of the relevant laws relating to liquor
- A restaurant with a separate cordoned off – area where all limited gambling machines are located
- Bona fide Community centre which –
    - occupies fixed premises
    - gaming machines cannot constitutes the main facility and must have substantial facilities
    - is not operated for gain
- Any other premises determine suitable by the Board

2.2.2 **Demonstration of enforceability of the legal age restrictions to the playing of gaming machines**

The establishment will have to demonstrate, where persons under the age of eighteen are permitted on the premises, that it will have the necessary controls in place to enforce that such underage persons are restricted from being able to play the gaming machines.

2.2.3 **The exclusion of certain sites**

The following categories of premises will not be licensed regardless of whether they provide an adult leisure facility.

- A supermarket, café or other such retailer of food;
- An amusement arcade;
- An airport, railway station, taxi rank or bus station,
- A theatre or cinema;
- Places of culture, including museums;
- A liquor store;
- A private home;
- A petrol or diesel station;
- A quest house or bed and breakfast establishment;
- A school, university, college or technikon; or
- Any other premises considered by the Board to be unsuitable.

2.2.4 **National Minimum Licensing Criteria**

The National Gambling Board's minimum licensing criteria as contained in section 4, annexure A and National Regulations attached as annexure B.

2.2.5 **The main business of the establishment may not be the operation of gaming machines**

The establishment will have to demonstrate that the playing of gaming machines will be a secondary or ancillary activity to the main adult leisure attraction or attractions which are offered.

2.2.6 **Such other factors as the Board may deem relevant**

These shall include but not limited to the following:

- Range, size and quality of other facilities;
- Gaming machines do not constitute the main facility.

2.3 **Standard of premises**

- The Premises must comply with all applicable local authority health and safety regulations.
- The layout of the Premises must be such as to preclude access to the gambling area by persons under the age of eighteen years. In this regard, the Premises must, at a minimum, be roped off from that of the primary business conducted thereon.
- Availability of sufficient parking on the site of the business, or street, or both.
- Any signage advertising the limited gambling machines available for play on the Premises will be subject to the Board's approval, based on conformity with the requirements for and standards regarding advertising contained in the Regulations and General Rules.
- Premises and the management thereof shall comply with all lawful requirements in respect of the activities to be conducted thereon.
- Adequate security should exist at the Premises.
- The Premises must have the capacity to link up with the central monitoring system.
- The Premises shall be immovable.
- The interior decoration must be of an acceptable standard and the gambling area should not be less than 3 square meters per LPM machine.
- Limited gambling machines must not be visible from outside of the premises on which they are located.
- Sites which serve meals to the public or alcoholic beverages must have adequate toilet facilities.
- In respect of additional gaming machine licence the licensee will in addition to the above be required to install a surveillance system which at a minimum comply with the following:
  - Every licensee shall install, maintain and operate at all times a surveillance system comprised of cameras, monitors, video recorders, and a video printer, that provides the coverage required by this Chapter.
  - The surveillance system must include date and time generators that display on each video recording the date and time of the recorded events and the displayed date and time must not obstruct the recorded view.
  - All equipment that may be utilised to monitor or record views obtained by the surveillance system must be and remain located in a room used exclusively for surveillance purposes and the entrance to the surveillance room must be located away from the view of employees and the general public -
  - Every licensee must retain all video recordings for at least fourteen (14) days after the recording is produced, unless a longer time period is required by another section of this Chapter, or by order of the board.

- All video recordings must be made in real time or extended play time and not in a time lapse recording mode.
- The surveillance system shall contain at a minimum, the following equipment
- dedicated cameras which are cameras that monitor a specified activity continuously, the placement of which shall be subject to approval by the Board;
    - ❖ a matrix which is a microprocessor controlled switching device which shall enable the system to direct any number of inputs to any number of outputs;
    - ❖ a titler with the capability to superimpose time, date and a title onto a video signal without obstructing the recorded view;
    - ❖ video loss detectors with the capability to detect loss in video and or generate an alarm when video loss is experienced;
    - ❖ a video printer with the capability to generate upon command, a clear, still black and white or colour copy or photograph or the images depicted on a video recording;
    - ❖ video recorders which shall record the video signals from the system;
    - ❖ monitors on which the views recorded by the surveillance system shall be displayed;
- Any surveillance remote station with access to the surveillance system shall have only the capability to monitor and switch between signals;
- Each camera shall have the capability of having its picture displayed on a video monitor;
- Cameras recording gaming machines shall be positioned in such a manner that opened machine doors do not obstruct the view to the inside of the gaming machine cabinet and a maximum of 12 gaming machines shall be covered by one camera. (Note that this chapter is based on the room that would be taken up by 12 standard gaming machines installed next to each other. Therefore gaps between gaming machines shall be taken into account when reviewing the required number of cameras.); and
- Any other requirement the Board may impose from time to time.

SECTION 3 – APPLICATION AND SUBMISSION REQUIREMENTS

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SECTION 3

ANNEXURE A

SECTION 3 – ANNEXURE A
GAUTENG GAMBLING BOARD

GAMING MACHINE LICENCE APPLICATION

I/We hereby apply, in terms of the Gauteng Gambling Act, 1995 (Act No 4 of 1995), for a gaming machine licence and confirm being aware of and understanding the provisions of the said Act and Regulations made thereunder, insofar as they pertain to this application.

Full name of applicant ……...

……...

Physical business address ……...

……...

Postal address ……..

……..

Telephone number ……

Telefax number ……

Trade name and physical address of premises in respect of which application is made ……

……

……

Number of gaming machines ……

Operation of gaming machines

- By agreement with route operator Yes/No
- If applicable and known, name and address of route operator ……

……

……

…… ……
Date Signature of applicant or duly authorised representative

……...
NAME – PRINT

……..
CAPACITY OF SIGNATORY

SECTION 3

ANNEXURE B

SECTION 3 – ANNEXURE B

APPLICATION INSTRUCTIONS

1 This form is to be completed by any person who is desirous of obtaining a gaming machine licence.

2 Read this form carefully before answering any of the questions. Any incomplete or inaccurate answer may result in denial of the application.

3 Answer every question completely and truthfully. Do not leave any blank spaces. If a question does not apply to you, indicate "Note Applicable" in response to that question. If there is nothing to disclose in respect of a particular question, state "None" in response to that question.

4 All entries on the application, except signatures, must be typed or block printed in ink.

5 Each page of the application must be initialled or suitably identified, once you have checked your answers and are sure they are complete and correct.

6 If you need additional space to answer any question(s), use blank pages and attach to the application. Be sure to indicate the number(s) of the question(s) you are answering if you use additional pages.

7 For purposes of this application "associate entity" means any entity which, directly or indirectly, controls, is controlled by or is under common control with, the applicant.

8 An applicant may, in the application, identify any document or information included in the application which, in the opinion of the applicant, is confidential or should for any reason not be disclosed to the public, and **show cause why the board may determine under Section 24(2)(a) of the Act that such document or information should not be open to public inspection**, provided such document or information can be separated from the remainder of the application.

Two copies including a loose-leaf copy of the application excluding such information must accompany this application.

9 The application may be submitted on your own reproduction provided that the content is exactly the same as contained herein. Any reproduction and all accompaniments must be on standard A4-size paper.

(a) The application must be submitted in the following format and sequence:

(i) Licence application;

(ii) Copies of advertisements required by Section 20 of the Act;

(iii) Applicant's proposal in accordance with the requirements set out in Section 3, Annexure D.

(iv) Relevant Declaration and Release Authorisation by the applicant and, if a company, the required Personal Declarations and Personal Release Authorisations relevant to the applicant company only; and

(v) Company Declarations and Release Authorisations for companies contemplated in paragraph 10(a), together with the required Personal Declarations and Release Authorisations in respect thereof contemplated in paragraph 10(b).

(b) The application shall be submitted as follows:

(i) 1 x original application;

(ii) 2 x copies of the original application one of which shall be in a loose leaf format;

(iii) 2 x public copies of the application marked as such (which shall exclude confidential information in terms of the Act); and

(iv) 1 x electronic (soft) or scanned copy of the application.

(v) Check list issued by the Board and duly signed by the applicant confirming the contents of the application

(c) Any incomplete application will be returned and the application fee will be forfeited. The applicant will be entitled to resubmit the application afresh on the next succeeding batch submission date.

(d) In the event that a site operator signs and submits more than one application with different route operators, all the applications in respect of this site will be returned until the route operators and the site licensee have resolved as to who is entitled to lodge the application and all application fees will be forfeited.

10 (a) **Company Declaration and Company Release Authorisation by all companies falling within the following categories:**

(i) The applicant, if a company;

(ii) All companies holding 5% or more of the issued share capital of the applicant; and

(iii) All corporate shareholders of the companies listed in (ii) who effectively hold an interest of 5% or more of the issued share capital of the applicant.

Note: The term "company" includes any corporate body, trust or partnership.

(b) **Personal Declaration and Personal Release Authorisation by all natural persons falling within the following categories;**

(i) The applicant, if a natural person;

(ii) all natural persons holding 1% or more of the issued share capital of the applicant;

(iii) all natural shareholders of the companies listed in 10(a)(ii) and (iii) who effectively hold an interest of 1% or more of the issued share capital of the applicant;

(iv) all current and proposed directors, the company secretary and senior management of the applicant; and

(v) all current directors and the company secretary of companies listed in 10(a)(ii) and (iii) that are not listed on a recognised Stock Exchange. For listed companies Personal Declarations and Personal Release Authorisations are only required where the interest contemplated in 10(a)(ii) or (iii) is 20% or more.

11 **APPLICATION FEES**

The **NON-REFUNDABLE** application fee of R9 300.00 must accompany the application.

(Note: In terms of Section 23 of the Act, any person who submits an application to the Board shall be liable for and pay to the Board all reasonable expenses incurred by the Board to conduct the necessary investigations in respect of the application.)

12 **REQUEST FOR FINAL COPIES OF THE RFP**

Copies of the final RFP will be made available to interested parties upon payment of a non refundable fee of R2 000,00 (two thousand rand) and the request shall be addressed to the

Chief Executive Officer
Gauteng Gambling Board
1256 Heuwel Avenue
Centurion

0157
Republic of South Africa

or post the request and a cheque to the

Chief Executive Officer
Gauteng Gambling Board
Private Bag X125
Centurion
0046
Republic of South Africa

13 **SUBMISSION OF PROPOSALS**

Applicants shall hand deliver copies of their proposals together with a clearly marked non confidential copy of their application to be made available for public scrutiny at the offices of the Board. The application shall be delivered to the Board's premises as indicated above. Each applicant shall assume full responsibility for the delivery of a complete proposal.

SECTION 3

ANNEXURE C

SECTION 3 – ANNEXURE C

(SPECIMEN ADVERTISEMENT)

GAUTENG GAMBLING ACT, 1995

APPLICATION FOR A GAMING MACHINE LICENCE

Notice is hereby given that …….
(full name of applicant) of ……
……. (physical address) intends submitting an application to the Gauteng Gambling Board for a gaming machine licence at …….. ……. (trading name and physical address of premises in respect of which application is made). This application will be open for public inspection at the offices of the Board from …… (See note 1).

Attention is directed to the provisions of Section 20 of the Gauteng Gambling Act, 1995 which makes provision for the lodging of written representations in respect of the application.

Such representations should be lodged with the Chief Executive Officer, Gauteng Gambling Board, Private Bag X125, Centurion, 0046, within one month from ……. (Same date as note 1). Any person submitting representations should state in such representation whether or not they wish to make oral representations at the hearing of the application.

NOTES:

(Not to form part of the advertisement and for information purposes only)

1 Date as arranged with Board to be inserted.

2 This notice must be placed in the Provincial Gazette as well as a newspaper circulating in the district in which the premises to which the application relates, are situated.

3 At least three weeks' notice is required for the placing of a notice in the Provincial Gazette.

SECTION 3

ANNEXURE D

SECTION 3 – ANNEXURE D

REQUIRED CONTENTS OF PROPOSAL

Full details of the identity of the applicant and the effective ownership thereof including group structures.

The proposal must comprehensively address all the assessment criteria set out in Section 2and clearly demonstrate that the establishment meets these requirements.

In addressing these criteria the following information must be included;

1. The following details of the applicant are required:

    (a) The name, address and identity number, if applicable, of the applicant;

    (b) Description of the form of the enterprise;

    (c) A registration certificate or number, if applicable;

    (d) A detailed description of the primary business conducted at the premises;

    (e) Details of ownership of the business conducted at the premises;

    (f) Tax details, including proof of registration or application for VAT, PAYE, Regional Services Council levies and income tax, including a valid tax clearance certificate if already registered, where applicable;

    (g) details of ownership of the premises, and or agreements whereby the applicant is entitled to possession of the premises subject to the application;

    (h) Diagram, photographs and description of the site layout;

    (i) Site location plan;

    (j) Confirmation of payment of any fees required in terms of the relevant provincial legislation, where payment is not made by cheque simultaneously with the application;

    (k) Release authorisations to conduct background investigations;

    (l) A copy of the licence for the principal business conducted on the site;

    (m) Personal declaration forms of the applicant, the enterprise of the applicant, its owners, directors and officers, if applicable;

    (n) Where LGM's are in larger premises to which persons under the age of eighteen years have access, the physical area within which the machines are exposed for play must be clearly demarcated and adequate access and control arrangements must be in place to ensure that persons under the age of eighteen years are prevented from access to such machines at all times, and

    (o) For the purposes of determining whether a business is secondary in nature, the following considerations may apply;

        (i) The size of the floor space for limited gambling machines as compared with the floor space used for the primary activity.
        (ii) The investment in the operation of the LGM's as compared to the investment in the primary business.

        (iii) The time required to manage the activities of the primary business as compared to the time required to manage the LGM business, and

        (iv) The gross revenue generated by LGM's as compared with the gross revenue generated by the primary business.

2. A sketch plan to scale of the premises indicating the proposed positioning of the gaming machines. The diagram must be clear and legible, be representative and proportional; include specific reference to the size of the premises through the use of detailed measurements and depict the number of limited payout machines to be exposed for play and their location within the establishment.

3. The photographs of the exterior of the business, as well as a meaningful written description of the primary business, be provided. The diagram must reflect:

    a) That the machines are placed in a manner which provides for adequate supervision for each machine. The diagrams must depict:

        i. An unobstructed view of each limited payout machine from the point of supervision;
        ii. Any mirrors necessary to maintain adequate supervision, and
        iii. Any video surveillance equipment that will be used for supervision.

    b) That there is a separate cordoned off area, or a restricted area as contemplated in the Liquor Act, 1989 (Act No 27 of 1989) when the larger (primary) premises are accessible to persons under the age of 18 years,

    c) That no limited payout machine be within two meters of the edge of the area contemplated in the previous paragraph where the floor are is continuous, unless a non-transparent continuous wall with a height of at least two meters is constructed. All machines must be located at least two metres from any apertures in the wall.

4. If the establishment forms part of a residence, a plan of the entire premises clearly indicating area usages. The number of residents must also be reflected.

5. The average daily number of persons frequenting the establishment indicating number of adults and number of children (under 18)

6. At least three years previous annual financial statements of the establishment reflecting the revenues of the various activities of the business of the establishment.

7. The budget for the year after the introduction of gaming machines reflecting the various sources of revenue.

8. Local authority approval for the conducting of the business including the operation of gaming machines, on the premises.

9. Copies of any relevant licences required (eg liquor licences).

10. Demonstration of the maximisation of positive, and limitation of negative, social impact on the local community.

11. Any incomplete application will not be processed and will be returned to the applicant.

SECTION 3

ANNEXURE E

GAUTENG GAMBLING BOARD

COMPANY RELEASE AUTHORISATION

("COMPANY" includes any corporate body, trust or partnership)

TO: All courts, banks, financial and other institutions, all government agencies, without exception, both foreign and domestic and to whomsoever else this authorisation may be duly presented.

FROM: ……
Name of company

……...
Identification number (eg company registration number)

…….. ...……
Contact person Telephone number

As a requirement of being involved in an application for a gambling licence in Gauteng, South Africa, the abovenamed company agrees to allow the Gauteng Gambling Board ("the Board) and the South African Police Services to conduct a full investigation into the background of the company.

The company HEREBY AUTHORISES the Chief Executive Officer of the Board and the Gauteng Regional Commissioner of Police ("the Commissioner") or any person authorised by an original letter of authority signed by either of them ("an authorised delegate") to make such enquiries as they deem necessary, and to have access to, inspect and obtain copies of:

(a) any credit report, other report, legal or commercial information derived from those reports that has any bearing on the company's credit worthiness, credit history, credit standing or credit capacity;

(b) any loan information, bank account records, safe deposit box records and bank statements pertaining to the company;

(c) any records relating to investigations of the operations or activities of the company conducted by any domestic or foreign police force, crime investigation agency, corporate regulatory agency or any gambling regulatory body;

(d) any court records relating to any present or past civil or criminal court proceedings to which the company is a party; and

(e) any other document, record or correspondence pertaining to the company.

You are HEREBY AUTHORISED to release to the Chief Executive Officer of the Board, the Commissioner or an authorised delegate, all information requested by any of them, documentary or otherwise, pertaining to the company.

This authorisation shall supersede and countermand any prior request or authorisation to the contrary. A photocopy of this authorisation will be considered as effective and as valid as the original.

Signed at…… on this the …..…….. day of ……..…… 200 ……

_____ _____
Chairman Secretary

_____ _____

Name (Print) Name (Print)

I, ……...(full name of declarant) of

……

(address of declarant) certify that:

1 I am the Chairman/Chief Executive Officer* representing the company identified in question 1 of the attached company declaration.

2 I have personally completed the attached company declaration or have supplied all the information required.

3 To the best of my knowledge and belief, the information supplied in the attached company declaration is true and correct in every detail and all information required to complete the attached company declaration has been disclosed.

4 The company undertakes to provide the Board with such further information, explanations or documentation as the Board may require to complete its investigation.

Signed at ……..…..... on ……..……..

_____ _____

Signature Signature of Witness

* Delete whichever is not applicable

_____

Name of Witness (Print)

_____

Address of Witness

COMPANY DECLARATION

1	Full name of company	…….....
2	Previous names of company	……..……..
3	Registered office of the company	……...……
		……...
		……...
		……...
4	Physical business address of the company	……...
		……...
		……...
		……...
5	Postal address of the company	……...
		……...
		……...
6	Telephone number	……..
7	Telefax number	……...
8	Date of incorporation of company	…….....
9	Place of incorporation of company	……
10	Company registration number	……...
11	Is the company a wholly or partly owned subsidiary of another company?	……..……

If "yes", please give details of all holding, subsidiary and associate entities of the holding company:

Name of company	Registration number and Place of Incorporation	Nature of Business	Relationship to applicant eg holding co, co-subsidiary, associate etc

NOTE: **A corporate "family tree" diagram detailing the relationship of the holding company to the applicant company, subsidiary and associate entities must accompany the application.**

12 Is the company a parent company of a group of companies? ……

If "yes", please give details of all subsidiary and associate companies of the group:

Name of company	Registration number and Place of Incorporation	Nature of Business	% Shareholding by applicant, subsidiary or associate entities

NOTE: **A corporate "family tree" diagram detailing the relationship of the holding company to the applicant company, subsidiary and associate entities must accompany the application.**

13 (a) Names, addresses and shareholdings of shareholders holding 5% or more of the issued share capital of the company :

Name	Address	Shareholding	%

(b) Number of other shareholders ……

14 Names and addresses of any lenders, mortgages or others providing finance, and the terms under which they have undertaken to provide funding in respect of this application:

Name	Address	Account/ Ref No	Type of facility	Amount of facility	Repay-ment period	Repay-ment Terms

15 Has the applicant company or any other company named in this application, or any director or officer of such company while acting as such, ever been convicted of an offence? ……..

If "yes", please give details i.e court at which convicted, date of conviction, offence and penalty:

……

……

……

16 Is there any reason to believe that a prosecution against the applicant company or any of the named companies, directors or officers may be pending? ……

If "yes", please give details:

……...

……

17 Details of any civil action taken by or against the applicant company during the past five years for amounts exceeding R100 000:

……

……

……...

18 Details of any civil action pending by or against the company for amounts exceeding R100 000:

……...

……...

……...

19 Has the applicant company or any subsidiary or associated entity ever been, or is it currently being investigated by any statutory or government body in the Republic or abroad?

……..……

If "yes", please give details below:

Statutory body/Department	Address
…….	……
…….	……
…….	……

20 Name and address of the company auditors:

Name: ……

Address: ……

……

……

Telephone: ……

NOTE: If change in auditors took place during the last five years, also supply details of previous auditors.

SECTION 3

ANNEXURE F

GAUTENG GAMBLING BOARD
PERSONAL RELEASE AUTHORISATION

TO: All courts, probation departments, employers, educational institutions, banks, financial and other institutions, all government agencies, without exception, both foreign and domestic and to whomsoever else this authorisation may be duly presented.

FROM:

(Surname) (Other Names)

Date of birth _____ Telephone:_____

As a requirement of my involvement in an application for a gambling licence in Gauteng, South Africa, I agree to allow the Gauteng Gambling Board (the Board) and the South African Police Services to conduct a full investigation into my background.

I HEREBY AUTHORISE the Chief Executive Officer of the Board and the Gauteng Regional Commissioner of Police (the Commissioner) or any person authorised by an original letter of authority signed by either of them (an authorised delegate) to make such enquiries as they deem necessary, and to have access to, inspect and obtain copies of:

- Any credit report, other report, legal or commercial information derived from those reports that has any bearing on my credit worthiness, credit history, credit standing or credit capacity;
- any loan information, bank account records, safe deposit box records and bank statements pertaining to me;
- any records relating to investigations of my activities by any domestic or foreign police force, crime investigation agency, corporate regulatory agency or any gambling regulatory body;
- any court records relating to any present or past civil or criminal court proceedings to which I am party; and any other document, record or correspondence pertaining to me.

You are HEREBY AUTHORISED to release to the Chief Executive Officer of the Board, the Commissioner or an authorised delegate, all information requested by any of them, documentary or otherwise, pertaining to me.

This authorisation shall supersede and countermand any prior request or authorisation to the contrary. A photocopy of this authorisation will be considered as effective and as valid as the original.

Signature: _____ Witness: _____

Date: _____ _____
Name of Witness [Print]

Place: _____ _____
Address of Witness

_____

_____

CERTIFICATION

I, (full name of declarant) .....
of (address of declarant) .....
.....
certify that:

1. I am the person identified in questions 1 and 2 of the attached personal declaration.
2. I have personally completed the attached personal declaration or have supplied all the information required.
3. To the best of my knowledge and belief, the information I have supplied in the attached personal declaration is true and correct in every detail and I have fully disclosed all information required to complete the attached personal declaration.
4. I agree to subject myself to fingerprinting by the South African Police Services.
5. I undertake to provide the Board with such further information, explanations or documentation as the Board may require to complete its investigation.

Signature: _____ Witness: _____

Date: _____ _____
Name of Witness [Print]

Place: _____ _____
Address of Witness

_____

_____

PERSONAL DECLARATION

1 Surname.....

2 First names.....

3 Identity numbers

a. South African.....

b. Foreign .....

4 Title.....

5 Maiden name.....

6 Aliases, nicknames, other name changes, legal or otherwise, you have used or by which you have been known:

7 Present residential address.....

.....

.....

8 Present business address .....

.....

.....

9 Occupation .....

10 Telephone

a. Business.....

b. Home.....

c. Fax .....

11 Date of birth.....

12 Place of birth (City, state and country) .....

13 Gender .....

14 Physical description

a. Height.....

b. Weight .....

c. Complexion .....

d. Colour of eyes .....

e. Colour of hair.....

f. Scars, tattoos or other distinguishing marks .....

15 Country/countries of which you are a citizen……..

16 Marital status ……

17 Details of spouse/partner

Date of marriage ……..
Place where married ……..
Full name of spouse/partner ……
Spouse's maiden name (where applicable)…….
Date of birth of spouse/partner ..... ……
Place of birth of spouse/partner ……
Spouse's/partner's occupation ……
Name and address of spouse's/partner's employer……..…

18 Name and address of previous spouse(s):

a. Current full name…… .....

b. Maiden surname (where applicable) ..... ……

c. Current address.....

If space is insufficient, supply information on attachment page.

19 Full name of father ……..
Date of birth ……
Occupation ..... ……

20 a. Full name of mother
b. Date of birth ……
c. Occupation ……..

21 Details of brothers and sisters, including half/step brothers and sisters:

Full Name	Relationship	Date of Birth	Occupation

22 Details of children, including step or adopted children:

Full Name	Relationship	Date of Birth	Occupation

23 Educational details:

a. Highest level of education attained .....

b. Name of last educational institution attended.....……

c. Year education in (a) above completed.....……

d. Professional qualifications.....

24 Passport information:

	Passport 1	Passport 2
Passport Number		
Country		
Place of Issue		
Date of Issue		
Date of expiry		

25 Military service/armed forced information:

Have you ever served in any armed forces? .....
If "yes",

a. Country .....

b. Arm of service .....

c. Branch .....

d. Date of entry .....

e. Date of discharge .....

f. Type of discharge .....

g. Rank at discharge .....

h. Serial number .....

While in the armed forces were you ever arrested for an offence which resulted in summary action, a trial, or court martial?

.....

If "yes", furnish details on an attachment page.

26 Arrests, detention and convictions (except for MINOR traffic offences).
Have you ever been, in South Africa or elsewhere –
convicted of an offence: .....
arrested, detained, charged or summonsed before a court to answer for any offence or violation for any reason whatsoever, regardless of the disposition of the event? .....

If "yes", to either question, provide details below. List all cases without exception.

Nature of offence	State and country	City/Town	Date of offence	Result of court case or hearing

27 Civil lawsuits and related matters.

a. Have you ever been a party in a civil lawsuit or are you aware of any such action that may be pending?……

b Have you ever had a judgement returned against you? ……

c. Have your salary, wages, earnings or other income ever been subject to garnishee order, attachment or the like? ……

d Have you ever had any article repossessed by a finance company or the like? …….
If "yes" to any of questions (a) to (d), furnish details on an attachment page.

e. Has your spouse or any member of your family (as listed in questions 19 to 22) ever been in South Africa or elsewhere, convicted of an offence? ……

If "yes", provide details below:

Name	Relationship	Charge	City, state and country	Date of offence	Result of court case or hearing

28 Residences

List all addresses at which you have been permanently resident over the last 20 years, beginning with your current address and working backwards.

Month and Year (From – To)	Street and Number	Suburb	City	State and Country

29 Employment history

Beginning with your current employment, list your employment history, including all businesses with which you have been involved, during the last 20 years.

(i)

Month and year (From – To)	Name and postal address of employer/business	Reason for leaving
Job Title	**Description of duties**	**Contact person & Tel Nr**

(ii)

Month and year (From – To)	Name and postal address of employer/business	Reason for leaving
Job Title	**Description of duties**	**Contact person & Tel Nr**

If additional space is needed, use an attachment page

b. Have you ever been dismissed, discharged or asked to resign from any employment or office of trust?
If "yes", complete the following:

Date	Name and address of Employer/office	Contact person	Reason for dismissal, discharge or resignation

c. List all companies, partnerships, joint ventures or any business with which you have been associated and actively participated in the management or operation thereof as a director, partner or other capacity during the last 20 years.

…….
……
…….

If space is insufficient, use an attachment page.

d. Have any of the businesses in which you have been employed or associated with listed in (a) or (c) ever been involved in any gambling or amusement related activities?

……
……
……

If space is insufficient, use an attachment page.

30 Personal references

Nominate three persons who are not related to you and who have known you for a period of preferably during the last five years. Referees may be asked to appraise your character and reputation.

Surname	First Names	Address	Occupation	Telephone	Years Known

31 Professional / Ethical history

a. List present and past membership (within the past five years) of professional bodies.

Body	Period

b. Have you ever been investigated or disciplined by a professional body for ethical misconduct or any other breach of rules or regulations? ……
If "yes", provide details
……
……
……

c. Have you ever been directly involved in the management of any company that has been placed in liquidation, judicial management, a scheme of arrangement or any other formal administration? (Include any pending arrangements) ……
If "yes", provide details
……
……
……

(If insufficient space, use attachment page)

d. Have you ever been disqualified from acting as a director of a company under any provision of current or previous South African or overseas legislation? ……
If "yes", provide details
……
……
……

e. To your knowledge, are you or have you ever been under investigation by any government authority?
……
If "yes", provide details
……
……
……

f. To your knowledge, have you ever been associated with a company that is currently, or has been, under investigation by any government authority? ……..
If "yes", provide details
……
……
……

g. Have you ever been granted a licence by any government authority to supply liquor or conduct any gambling activity? ……....
If "yes", provide details
……
……
……

h. Have you ever been refused a licence by any government authority to supply liquor or conduct any gambling activity or had any such licence revoked? ……..
If "yes", provide full particulars.
……
……
……

32 Credit history

a Are you currently in default in payment of any debts incurred solely or jointly in your name?
If "yes", complete the following

Creditor	Total amount owing R	Total amount in default R	Number of days overdue

b. Is any person, including any company, in respect of whom you have given a guarantee, in default of any such agreement? ……
If "yes", provide full particulars
……
……
……

c. Have you ever been refused credit or been the subject of an adverse credit rating report to your knowledge?
……...
If "yes", provide details
……
……
……

33 Provide brief details of the role it is envisaged you will have in the establishment and/or management of the applicant business

……
……
……

34 Provide brief details of any management experience you have had in the gambling industry

……
……
……

35 Have you ever been refused a licence for employment in the gambling industry, or been disciplined by a gambling regulatory body? ……
If "yes", provide details
……
……
……

36 Have you ever been excluded from a casino or other gambling establishment anywhere in the world?
……
If "yes", provide details

……
……
……

37 What is your current gambling licence status? (eg key employee)

……
……

Licence Type ……
Jurisdiction ……

Licence Type ……
Jurisdiction ……

Licence Type ……
Jurisdiction ……

Licence Type ……
Jurisdiction ……

Licence Type ……
Jurisdiction ……

38 Are you, your spouse or any member of your family (as listed in questions 19 and 22), or have any of the aforementioned been, during the preceding twelve months

(i) a public servant? .....

(ii) a member of Parliament or any provincial legislature or local authority, or any council, commission or house of traditional leaders established in terms of the Constitution?
……
……

(iii) an office-bearer or employee of any party, movement, organisation or body of a party political nature?
……
……

If "yes" to any of the above, provide full particulars.

39 Are you now, or have you ever been, subject to an order of a competent court declaring you to be mentally ill or disordered? ……
If "yes", provide full particulars
……
……
……

40 Financial information

a. Have you ever been declared insolvent or taken advantage of the laws relating to bankruptcy or insolvency?
……..
If "yes", provide details
……
……
……

b. Do you control, manage or hold in trust for another person, any assets or liabilities? ……
If "yes", provide details
……
……
……

c. Amount invested/to be invested in the applicant business and the percentage of ownership this will represent: ……..
……
……
……..

d. Has your interest in the applicant business been assigned, pledged or sold to any person or organisation, or will any agreement be entered into whereby your interest is or may be assigned, pledged or sold either in part or whole?.....
If "yes", provide full particulars
……
……
……

e. (i) Income tax reference number and date of registration ……..
(ii) VAT reference number and date of registration ……..
(iii) Revenue office where registered……..

f. Have your income tax or VAT returns or assessments been audited or adjusted within the past five years? ……
If "yes", provide details
……
……
……

g. Statement of assets and liabilities as at …….. 20 ……
(Statement date to be as recent as possible and within the past 3 months)

	Details Per schedule	Individual R	Spouse R
ASSETS			
Cash on hand			
Cash at bank	A		
Accounts receivable	B		
Shares & Fixed interest securities	C		
Business investments	D		
Real Estate	E		
Other assets	F		
TOTAL ASSETS			
LIABILITIES			
Accounts payable	G		
Taxes payable	H		
Unsecured loans	I		
Secured loans	J		
Other liabilities	K		
TOTAL LIABILITIES			
NET WORTH			
(Total assets minus total liabilities)			
Contingent liabilities	L		

All amounts to be expressed in South African Rand. Where applicable, conversion rates used should be indicated.

SCHEDULE A
CASH AT BANK

List below all bank accounts, foreign and domestic, maintained by you and your spouse

Name and address of financial institution	Names of persons appearing on account	Account No	Date opened	Type of account	Current balance

SCHEDULE B
ACCOUNTS RECEIVABLE

List below all accounts receivable held by you and your spouse. Indicate with an "S" in the first column, accounts receivable held by your spouse.

Name and address of debtor	Date incurred	Original amount	Unpaid balance	Payment/ Period	Interest rate	Maturity date	Purpose	Collateral

SCHEDULE C

SHARES AND FIXED INTEREST SECURITIES

List below all shares and securities held or controlled by you or your spouse. Indicate with an "S" in the first column, shares and securities held or controlled by your spouse.

Issuer	Type	No of shares or units	Purchase price	Date of purchase	Name in which held	Market value

SCHEDULE D

BUSINESS INVESTMENTS

List below all business investments held by you and your spouse, not reflected in Schedule C. This should include but not be limited to investments in joint ventures, partnerships and sole proprietorships.

Entity Name	Type of entity	Percentage of Ownership held	Purchase price	Date of purchase	Name in which held	Individuals or entities sharing interest and percentage ownership	Market value

SCHEDULE E

REAL ESTATE

Address/Location	Type of Property	Purchase price/ improvements at cost	Date of purchase	Name in which held	Annual income	Market value

SCHEDULE F

OTHER ASSETS

Type of asset	Held by self/spouse	Purchase price	Date of purchase	Market value	Other information

SCHEDULE G

ACCOUNTS PAYABLE

Name and address of creditor	Date incurred	Amount due	Payable by self/spouse	Nature of account

SCHEDULE H

TAXES PAYABLE

Revenue authority and address	Tax year	Amount due	Due by self/spouse	Date when return rendered	Tax reference number

SCHEDULE I

UNSECURED LOANS

Name and address of creditor	Date incurred	Original amount	Unpaid Balance		Payment/ period	Interest rate	Maturity Date	Purpose	Collateral
			Self	Spouse					

SCHEDULE J
SECURED LOANS

Name and address of creditor	Date incurred	Original amount	Unpaid balance		Payment/ period	Interest	Maturity date	Description of security
			Self	Spouse				

SCHEDULE K
OTHER LIABILITIES

Name and address of creditor	Date incurred	Original amount	Unpaid balance		Payment/ Period	Interest rate	Maturity date	Purpose	Description of liability	Collateral
			Self	Spouse						

SCHEDULE L
CONTINGENT LIABILITIES

Indicate with an "S: in the first column liabilities of your spouse

Name and address of creditor	Nature of liability	Date incurred	Original Amount	Unpaid balance	Payment/ period	Interest rate	Maturity date	Purpose	Collateral	Persons liable besides you and/ or your spouse

SECTION 4

ANNEXURE G

National Gambling Board

a member of the dti group

NATIONAL MINIMUM LICENSING CRITERIA FOR SITES WITH MORE THAN FIVE LIMITED PAYOUT MACHINES (LPMS)

1. INTRODUCTION AND BACKGROUND

The criteria herein is complementary to the general requirements and criteria of site licensing as contemplated in national and provincial gambling legislation.

The relevant provincial licensing authority (PLA) must have complied with the process of considering the LPM site applications in terms of its own provincial legislation and the applicable provisions of the national gambling legislation before lodging the application with the National Gambling Board.

2. CONSIDERATION BY THE PLAs

The relevant PLA must at least have considered the following factors for such applications:

a) Investigation and evaluation of the site applicants;
b) Consideration and evaluation of Route Operators;
c) Consideration of the nearest casino and the exclusivity contracts, if any, entered into by the casino and PLA,
d) Geographic distribution of the LPMs;
e) Supervision of the LPMs operation by a key employee during hours of operation;
f) Training of all employees servicing the LPMs operation,
g) Monitoring of the site to ensure adequate collection of taxes and levies;
h) Operation of LPMs must be incidental to the primary business conducted at the premises;
i) Layout of site; and
j) The evaluation criteria for site applications as provided in the national regulations.

Further to the above, the PLA must be in line with the strategy and plan by the PLA, which must not be contrary to national policy and legislation, to roll out sites with more than 5 machines.

3. **LPM BUSINESS MUST NOT BE PRIMARY BUSINESS OF THE APPLICANT**

The applicant must indicate in the application that LPMs are an incidental business to the entire business operations.

This shall be evaluated in the initial applications and the applicant must take reasonable measures to keep the primary business operational as a primary business but should market forces dictate otherwise the PLA shall take the necessary action and notify the Board on the status of the application within 30 days after its decision.

This shall be capture in the licence conditions of the said licence.

4. **SUSTAINABILITY OF THE BUSINESS**

The site must, through its financial report and projections show that it will be sustainable at least for a minimum period of three years after date of operation.

5. **GENERAL QUALIFICATION TO HOLD THE LICENCE**

The applicant must meet the general requirements to hold a licence as stipulated by both provincial and national gambling legislation.

6. **SUITABILITY OF THE APPLICANT AND EMPLOYEES**

The applicant to the site licensing process must meet all provincial and national gambling legislation requirements of suitability prior to the application being submitted to the Board.

7. **SUITABILITY OF PREMISES**

The site must be suitable to conduct the nature of business. Consideration shall be given to health and safety issues as required by the local authority.

The LPMs must not be visible to the public from outside the premises.

The site must not be accessible to people under the age of 18 years and proper control must be ensured to monitor access to the premises.

8. **SUITABILITY OF LOCATION**

The site must not be located near a casino, and must at least be away from any educational institution and places of worship as contemplated in the provincial legislation, policy and /or RFA.

Should any educational institution or place of worship be within a radius of 2km, the PLA must submit, with the application, a motivation to the Board for consideration of such a site.

9. **SOCIAL RESPONSIBILITY PROGRAMME**

The licensee must undertake to engage in a social local investment project.
This undertaking must, for every application, be accompanied by a motivation by the PLA for consideration of such a project (inclusive of a recommended percentage) prior to implementation.

10. **SOCIAL INVESTMENT PROGRAMME**

The licensee must undertake to make local investment of at least 1% of GGR, or any figure or percentage as recommended by the PLA for every application.

This investment shall be in the field deemed appropriate by the PLA andcannot be accumulated for a period of more than three years.

11. **RESPONSIBLE GAMBLING CONTRIBUTION TO THE SARGT**

The licensee must contribute to the SARGT, through the Route Operator, in line with the contribution by all operators as set out by the SARGT from time to time. Should the site operator be independent, a similar contribution made by site operators linked to a Route Operator must be contributed in the similar manner.

12. **CONSIDERATION OF PUBLIC OBJECTIONS**

The PLA must submit to the Board, all received public objections to the site licence together with the application and the PLAs response thereto.

13. **ALLOCATION OF 40 MACHINE SITES IN RELATION TO THE ENTIRE LPM ALLOCATION**

A Province shall not allocate more than 10% of the LPM provincial allocation to the 40 machine site.

14. **PROXIMITY BETWEEN 40 MACHINE SITES**

Each application shall specify the proximity of the 40 machine site (inclusive of pending application) with a motivation by the PLA for consideration of this application. Each case shall be considered on its merit and a general proximity can not be made a requirement.

15. **BROAD-BASED BEE**

Consideration of broad based BEE shall be in line with the draft codes of good practice on Broad-based BEE published on 9 December 2004 in terms of section 9(5) of the broad-based BEE Act, 2003 (Act N0 53 of 2003).

The key elements for consideration on commitment to broad-based BEE by the site owners are tabulated below and were comprised from the three basic components of broad-based BEE

as contemplated in the code of good practice and are; direct empowerment, human resource development and indirect empowerment.

15.1 Ownership of the sites

The applicant must show commitment to broad based BEE by ensuring that at least 51% of ownership of the site is acquired by blacks.

This must be in place at application stage or prior to operation of the site. Should the application not have a BEE structure in place at the time of application, a detailed plan, with a motivation from the PLA, must accompany the application with full details of the proposed BEE inclusive of the agreements and implementation dates for consideration by the Board.

15.2 Management of the sites

The applicant must show commitment to broad based BEE by ensuring that at least 51% of management of the site is acquired by blacks.

Should the application not have a BEE management structure during the application stage, a detailed plan, with a motivation from the PLA, must accompany the application with full details of the proposed BEE management inclusive of the agreements and implementation dates for consideration by the Board. This can be by done means of a progressive plan and the progression shall not take more than 3 years after date of operation. This shall be inclusive of management contracts, if any, to blacks.

15.3 Employment equity

The applicant must show commitment to broad-based BEE by submitting a 3 year plan and strategy of employment equity to be approved by the PLA and submitted with the application to the Board.

This plan must at a minimum be commitment to 70% of general staff is obtained from the black local community and 60% of management is from the same community.

The Employment equity plan must be in line with the Employment Equity Act, 1998 (Act No 55 of 1998). Should submission be required in terms of the Employment Equity Act, such submission shall be deemed to have been submitted and monitored accordingly.

15.4 Skills development and transfer

The applicant must show commitment to broad-based BEE by submitting a skills transfer plan that must be approved by the PLA.

This plan must ensure that skills are transferred to black local community within 5 years of operation which will enable that community to fully operate and manage the sites.

15.5 **Preferential procurement**

The applicant must show good commitment to broad-based BEE by committing to procure goods and services, if obtainable, from local community.

A three year preferential procurement plan must be approved by the PLA and be submitted to the Board with the application.

15.6 **Enterprise development**

The applicant must show commitment to broad-based BEE by procuring a majority of goods and services from SMMEs.

A three year enterprise development plan must be approved by the PLA and be submitted to the Board with the application. This can be consolidated with the preferential procurement plan, stipulated above, into one comprehensive plan.

15.7 **Residual elements**

The applicant must show commitment to broad based BEE by further engaging relevant commitments not mentioned above which are of critical consideration as a good motivation for the application to be approved by the Board.

These factors can, but not be limited to, infrastructural support to the local community, support of rural commitment, investment in social wage employees etc).

16. **TECHNICAL ARCHITECTURAL DIAGRAM**

The site must submit a technical architectural diagram of the site layout and that must be to the same as the one approved for operation of this kind of site.

This shall meet the requirements of SANS 1718 and a letter of certification ("LOC") must be issued.

17. **TECHNICAL COMPLIANCE**

The PLA must stipulate to the Board on how they will ensure technical compliance of the site to the approved requirements prior to commencement of operations.

All gaming equipment used in the operation shall be certified and approved by SABS in terms of SANS 1718 Part 2 and LOC's issued thereof.

18. **SUBMISSION OF DRAFT LICENCE CONDITIONS**

The PLA must submit the draft licence conditions of the site in questions.

19. **POLICY OF THE PLA**

The PLA must, for every application, motivate to the Board on compatibility of the application to its LPM policy.

20. **GENERAL CONSIDERATION**

a) The Board may invite both the PLA, the Route Operator and the site Operator to clarify issues during the consideration of the application and this shall not be a hearing process

b) Any application that fails to comply with these criteria shall be deemed incomplete and will not be considered by the Board.

Date: 27 January 2006

SECTION 4

ANNEXURE H

Database Government Gazettes
Gazette No 21584
Notice No 957
Regulation Gazette No 6884
Gazette GOV
Date 20000922

GOVERNMENT NOTICE

DEPARTMENT OF TRADE AND INDUSTRY

No. R. 957
22 September 2000

DRAFT

REGULATIONS UNDER THE NATIONAL GAMBLING ACT, 1996

(ACT NO. 33 OF 1996)

NATIONAL GAMBLING REGULATIONS ON LIMITED PAYOUT MACHINES.

THE MINISTER OF TRADE AND INDUSTRY HAS, UNDER SECTION 17 OF THE
NATIONAL GAMBLING ACT, 1996 (ACT NO. 33 OF 1996) MADE THE REGULATIONS

IN THE SCHEDULE

Interested persons and institutions are invited to submit written representation on the draft regulation to Mr. Gabrielle Makhonxa at the Department of Trade and Industry by no later than 20 September 2000 at:

Department of Trade and Industry
Private Bag X84
0001

Tel:(012) 310-1113
Fax:(012) 320-8527

SCHEDULE

PART 1 - GENERAL

CHAPTER 1

Definitions

1 In these regulations all words or expressions defined in the Act, including those contained in section 13 (2) of the Act, must have the meaning ascribed to them therein, unless any such word or expression is defined in these regulations or the context indicates otherwise.

"credits" means the amount of money available to a player with which to commence a game, as reflected on a limited payout machine in increments of the denomination of that particular limited payout machine or in Rand value, which accrues as a result of the insertion of cash or tokens, into the limited payout machine or the accumulation of anything won by a player at the completion of a game;

"gamble" means the risking of anything of value including anything won by a player during the course of a game on the outcome of an event which forms part of the game being played and includes the term double-up;

"game" means an event which

(a) commences when -

(i) the player makes a bet from the player's credit meter that is not part of any previous game; or

(ii) inserts one or more coins and game play is initiated.:

(b) is completed when -

(i) the player cannot continue play activity without committing additional credits from the credit meter or coin acceptance device; and

(ii) has no credits at risk.

(c) contains one or more of the following elements, each of which are deemed to be part of a single game -

(i) games that trigger a-free game feature and subsequent free games;

(ii) A metamorphic feature;

(iii) second screen bonus feature(s);

(iv) games with player choice, for example Draw Poker and Blackjack;

(v) games where the rules permit the wagering of additional credits, for example Blackjack insurance or the second part of a two-part Keno game;

(vi) gamble feature, (for example, Double-up);

"independent site operator" means a site operator, who is not linked to a route operator and is licensed to own and operate limited payout machines on a single site and is responsible for maintaining the machines, effecting the collection of monies and pay-ins the provincial taxes and levies due to the provincial licensing authorities;

"jackpot" means a prize in excess of the maximum prize and or additional to a game's pay-table that is available to be won by a player on one or more gaming machines;

"limited payout machine means" a gambling machine outside of a casino in respect of the playing of which the stakes and prizes are limited as prescribed;

"prescribed" means prescribed in the regulation issued in terms of the Act;

"request for application (RFA)" includes a request for proposal (RFP)

"route operator" means a company registered in terms of the Companies Act, 1973 (Act No. 61 of 1973} which is -

(a) licensed to own and operate limited payout machines;

(b) responsible for maintaining limited payout machines; and

(c) responsible for effecting the collection of monies and paying the provincial taxes and levies in respect of limited payout machine under its licence, site means premises licensed by a provincial licensing authority for the placement and operation of one or more limited payout machines;

"site operator" means the licensee who is entitled to keep limited payout machines owned by a route operator on his premises and to make them available to be played by members of the public, or, where a provincial

licensing authority licenses the premises on which such activities are conducted, means such licensed premises;

"stake" means the total Rand value of all coins and or credits put at risk at the commencement of a game or during a single game;

"token" means circular elements with an indicated Rand value used as input for gaming equipment in a licensed venue; and

"the Act" means the National Gambling Act, 1996 (Act No. 33 of 1996).

CHAPTER 2

Maximum number of limited payout machines

2 (1) The maximum number of limited payout machines which must be allowed to be operated in the Republic in terms of all licences granted must be 50 000 (fifty thousand). (2) The maximum number of limited payout machines, which must be allowed to be operated in terms of all licences granted by a provincial licensing authority in any particular province must be the number indicated next to the name of the province in respect of which that provincial licensing authority has jurisdiction:

(a) Eastern Cape 6 000

(b) Free State 4 000

(c) Gauteng 10 000

(d) Kwa-Zulu Natal 9 000

(e) Mpumalanga 4 000

(f) Northern Cape 2 000

(g) Northern Province 3 000

(h) North West 3 000

(i) Western Cape 9 000

Number of limited payout machines per site

3 (1) The operation of limited payout machines must be incidental to the primary business conducted on a site except in circumstances as described in sub-regulation (4).

(2) No gambling game must be played on a site other than a game as defined in these regulations: Provided that the game of Bingo may be played on a site under a licence permitting Bingo to be conducted at such a site.

(3) Subject to the provisions of sub-regulation (4), the maximum number of limited payout machines which must be allowed by a provincial licensing authority to be operated on a single site must be 5 (five).

(4) The Board may, on good cause shown and upon application by a provincial licensing authority, approve the licensing of limited payout machines in excess of 5 (five) machines and not more than 40 (forty): Provided that such application must be made in respect of every site for which limited payout machines in excess of 5 (five) is sought.

Prohibition of gambling by certain persons

4 (1) No person under the age of 18 (eighteen) must enter any designated area where limited payout machines are located or take part in any gambling or betting on a limited payout machine or operate a limited payout machine.

(2) No licensee or employee must permit any person who is under the age of 18 (eighteen) to enter or remain in an area where limited payout machines are located or to take part in any gambling or betting or to handle or operate a limited payout machine.

Stakes

5 (1) The maximum aggregate stake with which to commence a game and play it to its conclusion must be R 5-00 (five Rand).

(2) Notwithstanding anything to the contrary contained in the legislation of any province, no double-up must be allowed in a game.

Prizes

6 (1) The maximum aggregate prize payable in respect of a game, must be R500-00 (five hundred Rand).

(2) Any prize won in a game must be accrued to the winner thereof as credits or paid to such winner in cash and no prize or benefit may be offered to or accepted by the winner thereof in addition to or in lieu of credits or cash: Provided that payment of prize money may be made by way of a cheque on request or with the consent of the winner thereof.

Jackpots

7 (1) No linked or progressive jackpots must be allowed in respect of limited payout machines.

(2) No limited payout machine may offer any prize in excess of or in addition to the maximum prize payable in respect of a game.

Central electronic monitoring system

8 (1) The central electronic monitoring system referred to in section 13 (1)) (i) of the Act must comply with the standards as laid down from time to time by the South African Bureau of Standards and must be approved by the Board.

(2) A single central electronic monitoring system must be operated under the authority of the Board by a person appointed on terms and conditions as laid down by the Board after consultation with the Minister.

Categories of operator licenses

9 There must be only three categories of operators with respect to limited payout machines:

(a) Route operators;

(b) Site operators; and

(c) Independent site operators.

Geographic distribution of limited payout machine licences

10 Provincial licensing authorities must promote through their evaluation criteria wide geographic spread of limited payout machine site operators, to ensure that this form of entertainment is accessible to a wide range of the population of the Republic.

Credit extension

11 (1) A licensee must not, directly or indirectly, whether in his or her own name or that of a third party, extend credit in any form whatsoever to any patron, for the purpose of playing on, or operating, a limited payout machine.

(2) For purposes of this paragraph credit extension includes advancement of cash by the licensee against a patron's credit card and/or a

cheque.

Registration or licensing of limited payout machines

12 All limited payout machines licensed must be certified by the South African Bureau of Standards (SABS), or such other accredited authority nominated by the Board for this purpose and these machines must then be approved and registered or licensed by the relevant provincial licensing authority.

Standardisation of limited payout machines

13 All limited payout machines contemplated in these regulations must comply with the Single Station Gambling Machine Standard as laid down by the SABS, or such other accredited authority nominated by the Board for this purpose.

Movement of limited payout machines

14 (1) The removal of limited payout machines to or from licensed sites requires the prior approval of the provincial licensing authority and the process must be adequately monitored, documented and controlled.

(2) A licensee must submit as part of the minimum standard of internal control procedures, procedures to be followed relating the following:

(a) Sourcing of machines

(b) Distribution and movements of machines

(c) Machine conversions

(d) Disposal of machines.

Registration or licensing of employees

15 (1) Key employees as well as other employees required to be registered or licensed in terms of any gambling legislation must be registered or licensed with the licensing authority.

(2) In order to provide for a central national database the record of employee registration or licensing must be-kept in a computerised database containing at least the information required by the Board.

(3) The following employees of a licensee must be classified as key employees for the purposes of these regulations:

(a) Any executive, employee, or agent of a licensee having the power to exercise a significant influence over decisions concerning any part of the operations of such licensee

(b) The senior management of the licensee

(c) Every director, officer or equivalent of any such corporate body holding such a licence

(d) Any individual who has been specifically represented to the provincial licensing authority by the licensee, officer or director thereof as being important or necessary to the operation of the licensee

(e) All persons who individually or as part of a group formulate management policy

(f) Any job position or individual who, upon written notification by the provincial licensing authority, is considered to be a key position or employee for purposes of these standards

Employee report

16 Any information that comes to the attention of the licensee which may have a bearing on the suitability of an employee must be brought to the attention of the provincial licensing authority within 7 (seven) days.

Publication of a notice of availability of RFA

17 Notice of the availability of the Request for Application (RFA), must be issued by a provincial licensing authority and must be published in the Provincial Gazette and in the media circulating in the province.

Issuing of the RFA

18 The RFA must be available at the offices of the provincial licensing authority for a period to be determined in terms of provincial legislation or specified by the provincial licensing authority at a cost to be specified by the provincial licensing authority.

Clarification phase of application documentation

19 (1) Applicants must be given reasonable opportunity to seek clarification of the requirements of the application during the period from publication of the RFA until the closing date for applications.

(2) All requests for clarification must be in writing.

(3) Where requests for clarification are raised which, in the opinion of the provincial licensing authority, are relevant to any other applicants, the provincial licensing authority must make available written clarification to all applicants.

(4) The provincial licensing authority may at any time request an applicant to clarify information provided pertaining to the request or to supply additional information.

Publication of a notice

20 (1) There must be an advertisement of an intention to apply or receipt of such an application as the case may be in the relevant Provincial Gazette and a newspaper circulating in the area.

(2) The advertisement must state that the application must be open for public inspection at the offices of the provincial licensing authority and or such place nominated by the provincial licensing authority specifying the inspection period, hours and the address of the provincial licensing authority.

(3) Affected parties may make written representation to the provincial licensing authority with respect to the application.

Submission of the application

21 (1) Submission of the application must be done in accordance with the instructions contained in the application forms of the relevant provincial licensing authority and must contain all the information specified as well as specified documents and certified copies (if required) of the advertisements placed in the Provincial Gazette and newspaper(s), if applicable.

(2) An applicant may identify any document or information in the application which, in the opinion of the applicant, is confidential or should, for any reason, not be disclosed to the public and show cause why the provincial licensing authority may determine that such document or information should not be open for public inspection.

Public inspection and objection

22 (1) All applications must lie open for public inspection, with the exception of those documents which the provincial licensing authority has

determined to be confidential.

(2) In terms of provincial licensing authority legislation and policy, and as indicated in the public advertisement, the public can inspect and make representation of any aspect of the application.

Investigation and evaluation

23 Before granting a licence, the provincial licensing authority considering the application must:

(a) Conduct an assessment of the application against the specific evaluation criteria;

(b) Conduct a satisfactory probity investigation of the applicant, its owners, management and all relevant key individuals which may include a review of a probity investigation undertaken by another provincial licensing authority; and

(c) In the evaluation of route and independent site operators also conduct a financial viability investigation to determine the suitability of the business case of the applicant

Public hearing

24 (1) The provincial licensing authority, where applicable, must advertise the time and place of the public hearing in at least the Provincial Gazette and one newspaper circulating in the province.

(2) All proceedings relating to public hearings and deliberation of applications must be recorded and the record of the proceedings retained for at least two years or such longer period as determined in such other relevant legislation.

Deliberation and selection

25 The deliberation and selection must be based on the evaluation criteria set in the RFA and must comply with the provisions of applicable national and provincial gambling legislation,

Issuing of licence

26 (1) The issuing of the licence must be in terms of the conditions laid down by the provincial licensing authority.

(2) The licence must specify in detail the conditions relevant to the

licensee.

Display of licence

27 The licence issued by the provincial licensing authority must be prominently displayed at the entrance to the designated area where the limited payout machines are situated.

Advertising

28 (1) A licensee must only advertise in or on the exterior of the premises.

(2) No advertising must:

(a) Be offensive

(b) Promote over-stimulation of gambling

(c) Be aimed at attracting persons under the age of eighteen

(d) Compare payout, hold, win or any like indication of other limited payout machines

(e) Be misleading.

PART 2 - APPLICABLE TO THE LICENSING OF ROUTE OPERATORS

CHAPTER 3

Licence to be issued to companies only

29 (1) A route operator licence must only be issued to a company registered in terms of the Companies Act, 1973 (Act No. 61 of 1973).

Number of machines available per site

30 (1) A route operator must make available for play no more than the number of limited payout machines permitted under the terms of a route operator's license.

(2) Only limited payout machines licensed to the linked site operator must be permitted by such a route operator.

(3) A route operator must at all times ensure that the maximum number of limited payout machines permitted on a site is not exceeded.

Accounting records

31 (1) Provincial licensing authorities must require a licensee to keep such records as will enable such licensing authority to effectively regulate the activities of the licensees.

(2) Provincial licensing authorities must require licensees to comply with the following minimum requirements:

(a) Keeping of accurate, complete, legible and permanent records of all its transactions, conforming to generally accepted accounting practice

(b) Performing at least on a monthly basis reconciliation between metered revenue readings and cash collections

(c) Keeping of records required by the licensee's approved system of internal control.

Minimum internal control standards

32 (1) It must be a requirement that a licensee establish and maintain minimum standards with regard to administrative and accounting procedures for the purpose of determining the licensee's liability for fees, levies and taxes and for the purpose of exercising effective control over regulatory matters pertaining to the business of the licensee.

(2) The procedures must be designed by the licensee to ensure that:

(a) Assets are safeguarded

(b) Financial and operational records are accurate and reliable

(c) Transactions are performed only in accordance with management's general or specific authorisation

(d) Transactions are recorded accurately to permit proper reporting of gambling revenues, levies and taxes

(e) Functions, duties and responsibilities are appropriately segregated and performed in accordance with sound practices by competent, appropriately qualified personnel.

(3) Prior to being granted approval to start operations, a route operator must submit its system of minimum internal controls for approval

to the provincial licensing authority.

(4) The submission of the system of minimum internal controls must comprise a detailed description relating to administrative and accounting procedures including:

(a) An organisational chart depicting segregation of functions and responsibilities

(b) A description of the duties and responsibilities of each position shown on the organisational chart

(c) A letter from an independent practicing chartered accountant stating that the system of internal control has been reviewed by the accountant and complies with the above requirements

(d) A licensee wishing to amend its approved system of minimum internal controls must, prior to implementing such amended system, submit to the provincial licensing authority a copy of the revised system of minimum internal controls for approval.

Internal audit function

33 (1) It is a requirement that a route operator licensee must establish and maintain an internal audit function that must be responsible for, without limitation, the following:

(a) The review and evaluation of the adequacy of internal controls

(b) Monitoring the licensee's compliance with the minimum internal control standards and other provisions in terms of national and provincial legislation

(c) The reporting to the board of directors or committee thereof, executive management and the provincial licensing authority of instances of non-compliance with such minimum internal control standards or any national or provincial legislation

(d) The reporting to the board of directors or committee thereof, executive management and the provincial licensing authority of any material weaknesses or shortcomings in the system of internal control

(e) The recommendation to management of procedures to eliminate any material weaknesses or shortcomings in the system of internal control; and

(f) The preparation and maintenance of reports documenting the information referred to above.

Audited financial statements

34 (1) A route operator must provide the provincial licensing authority with audited annual financial statements within such periods as specified in terms of the relevant provincial legislation.

(2) The provincial licensing authority may request additional information or documents from either the licensee or the auditor of the licensee regarding the financial statements or the services performed by the auditor.

Cost of monitoring representations and commitments

35 A route operator licence must be granted subject to the condition that applicants commit themselves to bearing the reasonable cost of monitoring by the provincial licensing authorities that the representations and commitments made in their applications, inter alia, with regard to Black Economic Empowerment, are being complied with and this includes compliance with the relevant provincial legislation.

Licensing process for route operators

36 (1) When submitting an application for a route operator licence the applicant must indicate the proposed sites, which are envisaged to form part of the route.

(2) A route operator licence application must be in a format specified by the provincial licensing authority.

(3) The process to be followed by provincial licensing authorities in processing route operator licences must provide for the following as provided for in regulations 17 - 26:

(a) Publication of a notice calling for applications for route operators

(b) Issue of the Request for Application (RFA)

(c) Clarification of Request for Application (RFA)

(d) Publication of a notice of intention to apply for a route operator licence or receipt of such application by a provincial licensing

authority, as applies in a particular province

(e) Submission of applications to the provincial licensing authority

(f) Public inspection and objection

(g) Investigation and evaluation

(h) Public hearings

(i) Deliberation and selection

{i) Issuing of a licence.

Contents of the application for a route operator licence

37 The information requested by a provincial licensing authority must contain at least the following:

(a) The name, address and other relevant details of the applicant

(b) A company registration certificate or number:

(c) The corporate structure of the applicant, including holding companies, effective owners, shareholders, affiliates, subsidiaries, members, trustees, partners, joint ventures, related parties and any other entity or individual who has an interest in the applicant

(d) An organisational chart of the enterprise of the applicant, which includes position descriptions and the names of persons holding such positions

(e) Personal declaration forms or business declaration forms of all persons owning directly or indirectly more than five percent of equity of the applicant and all key employees

(f) The criminal history, if any, of the applicant, the enterprise of the applicant, its owners, directors and officers

(g) Detailed financial statements including full description of significant assets and liabilities (where applicable)

(h) Tax details, including proof of registration or application for VAT, PAYE, Regional Services Council levies and income tax, including a valid tax clearance certificate (if required), if

already registered

(i) Details of gambling related licences held anywhere in the world and of pending and unsuccessful applications

(j) Details of the solvency history of the applicant

(k) A detailed business plan

(l) Detailed financial projections in line with the attached proforma documentation

(m) A schedule of proposed sites and a description of the primary business of each site

(n) Details of economic empowerment and community benefit plans

(o) Release authorisations to conduct background investigations

(p) Confirmation of payment of prescribed fees

(q) Copies of prescribed notices.

Evaluation criteria for licensing route operators

38 (1) The provincial licensing authority must undertake a proper evaluation and adjudicating process based on the evaluation and selection criteria contained in the RFA.

(2) This process must be transparent and fully documented.

(3) At least the following criteria must be considered during the evaluation of applications for route operator licences:

(a) Qualification to hold a licence in terms of national and provincial acts, regulations, rules and standards

(b) Suitability of applicant and key persons:

i. Good character and integrity

ii. Compliance with the law

iii. Criminal history and prior convictions

iv. Solvency history

v. Associations with unsuitable persons

vi. Licensing history

vii. Taxation history

(c) Business plan:

i. Viability and financing of the project

ii. Financial resources or access thereto

iii. Experience and expertise in gambling

iv. Management competence

v. Suitability of the source of funding

vi. Acceptability of key assumptions used in financial projections

vii. Promotion of national objectives regarding responsible gambling

viii. Revenue benefits from taxes and levies

(d) Economic empowerment and community benefits;

i. Affirmative action and employment equity

ii. Level of local participation

iii Promotion of small, medium and micro enterprises

iv. Job creation

v. Community benefits to be derived from the operation

vi. The extent to which the South African demographic profile is represented in the ownership, control and management structure of the operator, sub-contractors, suppliers, service providers and limited payout machine sites to be operated.

(e) Geographical spread of sites

(f) The extent to which the applicant is able to demonstrate the achievement of Black Economic Empowerment through the operation of the route and the selection of the sites

i. The extent to which historically disadvantaged individuals are represented in the management structure of the business

ii. The extent to which historically disadvantaged individuals hold equity in the business

iii. The extent to which services, suppliers etc. will be provided by firms owned and operated by historically disadvantaged individuals

iv. Plans to educate and transfer skills to historically disadvantaged individuals.

PART 3 - APPLICABLE TO THE LICENSING OF SITE OPERATORS

CHAPTER 4

Unsuitable locations

39 (1) A provincial licensing authority may deny an application for a site licence if the provincial licensing authority deems that the place or location for which the licence is sought is unsuitable for the conduct of such gambling.

(2) Without limiting the generality of the foregoing, the following places or locations may be deemed unsuitable:

(a) Premises inconsistent with national and provincial gambling legislation

(b) Premises located in a place where gambling is contrary to valid zoning rights

(c) Premises lacking adequate supervision or surveillance

(d) Any other premises where the conduct of gambling would be inconsistent with the public policy of the Republic

(e) Premises on which a site is located are accessible to persons under the age of eighteen

(f) Premises that may result in problem gambling

(3) In considering the suitability of premises the provincial licensing authority may take into account the situation of such premises whether they are within the immediate vicinity of churches and the like, schools, children's playgrounds and premises difficult to police.

Ownership of premises where gambling is conducted

40 (1) Provincial licensing authorities may deem that premises are unsuitable for the conduct of gambling operations by reason of ownership by a person who is unqualified or disqualified to hold a gambling licence.

(2) In all cases in which the premises in or an which the gambling operation for which a licence is sought are not wholly-owned by the applicant, the applicant must furnish to the provincial licensing authority a statement of the name and address of the owner or owners of such premises, a copy of all agreements whereby the applicant is entitled to possession of the premises, and such other information as the provincial licensing authority may require.

(3) In all cases in which the premises are partly owned by the applicant, the applicant must furnish to the provincial licensing authority complete information pertaining to the interest held by any person, including interest held under any mortgage, deed or trust agreement, or other device whatsoever, together with such other information as the provincial licensing authority may require.

(4) Every licensee must furnish to the provincial licensing authority complete information pertaining to any change of ownership of the premises or of any change of any interest in the premises in or on the licensed gambling is operated within thirty days of becoming aware of such a change.

Operation of limited payout machines must not be the primary business

41 (1) An application for a site operator licence may only be granted if the operation of the limited payout machines is incidental to the primary business conducted at the premises.

(2) In determining whether the applicant's proposed operation of limited payout machines is incidental to the primary business at particular premises, the provincial licensing authority may consider some or all of the following factors:

(a) The floor space used for the limited pay-out machines as compared to the floor space used for the primary business

(b) The investment in the operation of the limited payout machines as compared to the investment in the primary business

(c) The time required to manage or operate the limited payout machines as compared to the time required to manage or operate the primary business

(d)The gross revenue generated by the limited payout machines as compared to the gross revenue generated by the primary business

(e) Whether a substantial portion of the financing of the business as a whole has been provided in exchange for the right to operate limited payout machines on the premises

(f) Other factors, including but not limited to the establishments name, the establishment's marketing practices and the public's perception of the business.

Supervision and location of limited payout machines

42 A licensee must maintain adequate control and supervision of ail limited payout machines during hours of operation and must not increase the number of limited payout machines or change the location of any limited payout machine without the prior approval of the provincial licensing authority.

Layout of site

43 (1) Upon application for a site operator licence, an applicant must submit with the application a clear and legible diagram, together with photographs of the exterior and interior of the business and a meaningful narrative written description of the primary business.

(2) The diagram must be representative, proportional, including specific reference to the size of the premises through the use of detailed measurements. The diagram must depict the number of limited payout machines to be exposed for play and their location within the establishment in a manner which must provide adequate supervision of each limited payout machine and which must depict:

(a) An unobstructed view of each limited payout machine from the point of supervision

(b) Any mirrors necessary to maintain adequate supervision

(c) Any video surveillance equipment that will be used for supervision

(d) The location of any recreational, non-gambling arcade or amusement games or devices at an establishment where there is access to persons under the age of 18 (eighteen). The location of these must be sufficiently separated from any limited payout machines to deter loitering near the gambling area by persons under the age of 18 (eighteen).

Hours of operation

44 (1) In granting a site licence the provincial licensing authority may, after taking into account the situation of the site, determine and limit the hours of operation of the site.

(2) The provincial licensing authority may, if good cause shown license the operation of limited payout machines outside the normal hours of operation of the primary business.

Licensing process for site operators

45 The process to be followed by provincial licensing authorities in granting site operator licences must provide for the following as provided for in regulations 17-26:

(a) Publication of a notice calling for applications for site operators

(b) Issue of the Request for Application (RFA)

(c) Clarification of Request for Application (RFA)

(d) Publication of a notice of intention to apply for a site operator licence or receipt of an application for a site operator licence

(e) Submission of applications to the provincial licensing authority

(f)Public inspection and objection

(g) investigation and evaluation

(h) Public hearings where applicable

(i) Deliberation and selection

(i) Issuing of a licence.

Contents of the application for a site operator licence

46 The information requested by a provincial licensing authority must contain at least the following:

(a) The name, address and other relevant details of the applicant

(b) A description of the form of the enterprise

(c) Company registration certificate or number (if applicable)

(d) A detailed description of the primary business conducted at the premises

(e) Details of ownership of the business conducted at the premises

(f) Tax- details, including proof of registration or application for VAT, PAYE, Regional Services Council levies and income tax, including a valid tax clearance certificate (if required) if already registered

(g) Details of ownership of the premises, and/or agreements whereby the applicant is entitled to possession of the premises subject to the application

(h) Diagram, photographs and description of the site layout

(i) Site location plan

(j) Confirmation of payment of prescribed fees

(k) Release authorisations to conduct background investigations

(l) A copy of the licence for the principal business conducted at the site

(m) Personal declaration forms of the applicant, the enterprise of the applicant, its owners, directors and officers

(n) Copies of prescribed notices

(o) Additional information as specified in sub-regulation 41

Evaluation criteria for licensing site operators

47 At least the following criteria must be considered during the

evaluation of applications for site operator licences:

(1) The provincial licensing authority must undertake a proper evaluation and adjudicating process based on the evaluation and selection criteria contained in the RFA.

(2) This process must be transparent and fully documented

(3) At least the following criteria must be considered during the evaluation of applications for route operator licences:

(a) Qualification to hold a licence in terms of national and provincial acts, regulations, rules and standards

(b) Suitability of applicant and key persons

i. Good character and integrity

ii. Compliance with the law

iii. Criminal history and prior convictions

iv. Solvency history

v. Associations with unsuitable persons

vi. Licensing history

vii. Taxation history

(c) Evaluation in terms of the provisions of regulation 41

(d) Suitability of premises with regard to the proposed layout and the location of the site and other factors deemed relevant by the provincial licensing authority

(e} The extent to which the applicant is able to demonstrate the achievement of Black Economic Empowerment through ownership and operation of the business.

PART 4 - APPLICABLE TO THE LICENSING OF INDEPENDENT SITE OPERATORS

CHAPTER 5

Maximum number of machines

48 An independent site operator must make available for play only the maximum number of limited payout machines authorised in terms of its licence, but in any event may not operate more than a maximum of forty machines as provided for in terms of the national regulations.

Accounting records

49 Provincial licensing authorities must require licensees to comply with the following minimum requirements:

(1) The provincial licensing authority must undertake a proper evaluation and adjudicating process based on the evaluation and selection criteria contained in the RFA.

(2) This process must be transparent and fully documented.

(3) At least the following criteria must be considered during the evaluation of applications for independent site operator licences:

(a) Keeping of accurate, complete, legible and permanent records of all its transactions, conforming to generally accepted accounting practice

(b) Performing at least on a monthly basis reconciliation between metered revenue readings and cash collections

(c) Keeping of records required by the licensee's approved system of internal control.

Minimum internal control standards

50 (1) It must be a requirement that a licensee must establish and maintain minimum standards with regard to administrative and accounting procedures for the purpose of determining the licensee's liability for fees, levies and taxes and for the purpose of exercising effective control over regulatory matters pertaining to the business of the licensee.

(2) The procedures must be designed to ensure that:

(a) Assets are safeguarded

(b) Financial and operational records are accurate and reliable

(c) Transactions are performed only in accordance with management's general or specific authorisation

(d) Transactions are recorded accurately to permit proper reporting of gambling revenues, levies and taxes

(e) Functions, duties and responsibilities are appropriately segregated and performed in accordance with sound practices by competent, appropriately qualified personnel.

(3) Prior to being granted approval to start-operations, an applicant must submit its system of minimum internal controls for approval to the provincial licensing authority.

(4) The submission of the system of minimum internal controls must comprise a detailed description relating to administrative and accounting procedures including:

(a) An organisational chart depicting segregation of functions and responsibilities

(b) A description of the duties and responsibilities of each position shown on the organisational chart

(c) A letter from an independent practicing chartered accountant stating that the system of internal control has been reviewed by the accountant and complies with the above requirements

(d) A licensee wishing to amend its approved system of minimum internal controls must, prior to implementing such amended system, submit to the provincial licensing authority a copy of the revised system of minimum internal controls for approval.

Internal audit function

51 It is a requirement that an independent site operator licensee must establish and maintain an internal audit function that must be responsible for, without limitation, the following:

(a) The review and evaluation of the adequacy of internal controls

(b) Monitoring the licensee's compliance with the minimum internal control standards and other provisions in terms of national and provincial legislation

(c) The reporting to the board of directors or committee thereof, executive management and the provincial licensing authority of instances of non compliance with such minimum internal control

standards or any national or provincial legislation

(d) The reporting to the board of directors or committee thereof, executive management and the provincial licensing authority of any material weaknesses in the system of internal control

(e) The recommendation to management of procedures to eliminate any material weaknesses in the system of internal control; and

(f) The preparation and maintenance of reports documenting the information referred to above.

Audited financial statements

52 (1) Each licensee must submit to the provincial licensing authority a copy of its audited annual financial statements, and any reports communicating the results of the audit within such period as required by the provincial licensing authority.

(2) The provincial licensing authority may request additional information or documents from either the licensee or the auditor of the licensee, through the licensee, regarding the financial statements or the services performed by the auditor.

Cost of monitoring representations and commitments

53 It must be a condition for granting an independent site operator licence that applicants commit themselves to bearing the reasonable cost of monitoring by the provincial licensing authorities that the representations and commitments made in their applications, inter alia, with regard to economic empowerment and Black Economic Empowerment, are being complied with and this includes compliance with the relevant provincial legislation.

Licence to be issued to companies only

54 Where the independent site operator applies to own and operate more than five machines the applicant must be a company registered in terms of the Companies Act (Act No. 61 of 1973).

Unsuitable locations

55 (1) A provincial licensing authority may deny an application for an independent site operator licence if the provincial licensing authority deems that the place or location for which the licence is sought is unsuitable for the conduct of such gambling.

(2) Without limiting the generality of the foregoing, the following places or locations may be deemed unsuitable:

(a) Premises inconsistent with national and provincial gambling legislation

(b) Premises located in a place where gambling is contrary to valid zoning rights

(c) Premises lacking adequate supervision or surveillance

(d) Any other premises where the conduct of gambling would be inconsistent with the public policy of the Republic

(e) Premises on which a site is located are accessible to persons under the age of eighteen

(f) Premises that may result in problem gambling

(3) In considering the suitability of premises the provincial licensing authority may take into account the situation such premises whether they are within the immediate vicinity of churches and the like, schools, children's playgrounds and premises difficult to police.

Ownership of premises where gambling is conducted

56 (1) Provincial licensing authorities may deem that premises are unsuitable for the conduct of gambling operations by reason of ownership by a person who is unqualified or disqualified to hold a gambling licence.

(2) In all cases in which the premises in or on which the gambling operation for which a licence is sought are not wholly-owned by the applicant, the applicant must furnish to the provincial licensing authority a statement of the name and address of the owner or owners of such premises, a copy of all agreements whereby the applicant is entitled to possession of the premises, and such other information as the provincial licensing authority may require.

(3) In alt cases in which the premises are partly owned by the applicant, the applicant must furnish to the provincial licensing authority complete information pertaining to the interest held by any person other than the applicant, including interest held under any mortgage, deed or trust agreement, or other device whatsoever, together with such other information as the provincial licensing authority may require.

(4) Every licensee must furnish to the provincial licensing authority

complete information pertaining to any change of ownership of the premises or of any change of any interest in the premises in or on which the licensed gambling is operated within 30 days of becoming aware of the change.

Supervision and location of limited payout machines

57 A licensee must maintain adequate control and supervision of all limited payout machines during hours of operation and must not increase the number of limited payout machines or change the location of any limited payout machine without the prior approval of the provincial licensing authority.

Layout of site

58 (1) Upon application for an independent site operator licence, an applicant must submit with the application a clear and legible diagram, together with photographs of the exterior and interior of the business and a meaningful narrative written description of the primary business.

(2) The diagram must be representative, proportional, including specific reference to the size of the premises through the use of detailed measurements.

(3) The diagram must depict the number of limited payout machines to be exposed for play and their location within the establishment in a manner which must provide adequate supervision of each limited payout machine and which must depict:

(a) An unobstructed view of each limited payout machine from the point of supervision

(b) Any mirrors necessary to maintain adequate supervision

(c) Any video surveillance equipment that will be used for supervision

(d) The location of any recreational, non-gambling arcade or amusement games or devices at an establishment where there is access to persons under the age of 18 (eighteen). The location must be sufficiently separated from any limited payout machines to deter loitering near the gambling area by persons under the age of 18 (eighteen).

Hours of operation

59 (1) In granting an independent site licence the provincial licensing

authority may, after taking into account the situation of the site, determine and limit the hours of operation of the site.

(2) In this regard, the provincial licensing authority may only licence operation of limited payout machines outside the normal hours of operation of the primary business upon good cause shown.

Licensing process for independent site operators

60 (1) An independent site operator licence application will be in a form specified by the provincial licensing authority.

(2) The process to be followed by provincial licensing authorities in granting independent site operator licences must provide for the following as provided for in regulations 17-26.

(a) Publication of a notice calling for applications for independent site operators

(b) Issue of the Request for Application (RFA)

(c) Clarification of Request for Application (RFA)

(d) Publication of a notice of intention to apply for a route operator licence

(e) Submission of applications to the provincial licensing authority

(f) Public inspection and objection

(g) Evaluation and investigation

(h) Public hearings

(i) Deliberation and selection

(j) Issuing of a licence certificate.

Contents of the application for an independent site operator licence

61 The information requested by a provincial licensing authority must contain at least the following:

(a) The name, address and other relevant details of the applicant

(b) A company registration certificate or number

(c) Personal declaration forms or business declaration forms of all persons owning directly or indirectly more than five percent of equity of the applicant and all key employees

(d) The criminal history, if any, of the applicant, the enterprise of the applicant, its owners, directors and officers

(e) Detailed financial statements including full description of significant assets and liabilities (where applicable)

(f) Tax details, including proof of registration or application for VAT, PAYE, Regional Services Council levies and income tax, including a valid tax clearance certificate (if required), if already registered

(g) Details of gambling related licences held anywhere in the world and of pending and unsuccessful applications

(h) Details of the solvency history of the applicant

(i) A detailed business plan

(j) Detailed financial projections in line with the attached proforma documentation

(k) Details of economic empowerment and community benefit plans

(l) Release authorisations to conduct background investigations

(m) Confirmation of payment of prescribed fees

(n) Copies of prescribed notices.

(o) Details of ownership of the premises, and/or agreements whereby the applicant is entitled to possession of the premises subject to the application

(p) Diagram, photographs and description of the site layout

(q) Site location plan

(r) A copy of the licence for the principal business conducted at the site (if applicable)

(s) Additional information as specified in sub-regulation 41. (if

applicable)

Evaluation criteria for licensing independent site operators

62 (1) The provincial licensing authority must undertake a proper evaluation and adjudicating process based on the evaluation and selection criteria contained in the RFA. This process must be transparent and fully documented.

(2) At least the following criteria must be considered during the evaluation of applications for independent site operator licences

(a) Qualification to hold a licence in terms of national and provincial acts, regulations, rules and standards

(b) Suitability of applicant and key persons:

i. Good character and integrity

ii. Compliance with the law

iii. Criminal history and prior convictions

iv. Solvency history

v. Associations with unsuitable persons

vi. Licensing history

vii. Taxation history

(c) Business plan:

i. Viability and financing of the project

ii. Financial resources or access thereto

iii. Experience and expertise in gambling

iv. Management competence

v. Suitability of the source of funding

vi. Acceptability of key assumptions used in financial projections

vii. Promotion of national objectives regarding responsible gambling

viii. Revenue benefits from taxes and levies

(d) Economic empowerment and community benefits:

i. Level of local participation

ii. Promotion of small, medium and micro enterprises

iii. Job creation

iv. Community benefits to be derived from the operation

(e) The extent to which the applicant is able to demonstrate the achievement of Black Economic Empowerment

i. The extent to which historically disadvantaged individuals are represented in the management structure of the business

ii. The extent to which historically disadvantaged individuals hold equity in the business

iii. The extent to which services, suppliers etc. will be provided by firms owned and operated by historically disadvantaged individuals

iv. Plans to educate and transfer skills to historically disadvantaged individuals

(f) Suitability of the premises with regard to the proposed layout and the location of the site and other factors deemed relevant by the provincial licensing authority

(g) Evaluation in terms of the provisions of regulation 41 (if applicable)

(h) Affirmative action and employment equity.

PART 5 - APPLICABLE TO THE PROVINCIAL LICENSING AUTHORITIES

CHAPTER 6

Monitoring function

63 The provincial licensing authority must have in place a monitoring function and supporting structures that will be used to ensure that undertakings contained and made in the applications for licenses are being met.

Procurement of financial and controlling interests in licensees

64 Provincial licensing authorities must have provisions in place whereby any procurement of a financial or controlling interest of five percent or more in the business to which a licence relates would be required to apply for the consent of the relevant provincial licensing authority.

Taxes and levies

65 The provincial licensing authority must put in place measures to ensure complete and timeous collection of taxes/levies.

CHAPTER 7

Title and commencement

66 These regulations shall be called the National Gambling Regulations on Limited Payout Machines and shall come into operation on the date of promulgation thereof.

GAUTENG GAMBLING BOARD

CHECKLIST FOR A SITE LICENCE APPLICATION

*(*Failure to enclose this checklist with the application from will result in the application for being returned)*

Name of Route Operator associated with :	
Registered Name of Business (Site):	
Trading Name of Business:	
Type of Business:	
PDI / Non PDI Premises:	
Batch No.:	
Maximum number of LPMs exposed for play	
Date of completion of checklist: ***(*Failure to complete this Section of the checklist will result in the application form being returned)***	
Date of submission (to the Board):	

SECTION A

BUSINESS ENTITY DETAILS		ATTACHED/NOT
Documentation required if legal nature of the primary business is:		
A Sole Proprietorship		
A Private Company or Public Company (i.e. Pty Ltd or Ltd	**Memorandum of Association**	
	Certificate of Incorporation	
	Articles of Association	
	Share register	
	Letter of consent or approval to gambling activities on the premises from all members of private or public company enclosed, duly signed and dated	
	Board or similar resolution authorising the appointment of signatory to & execute documents on behalf of the primary business	
A Closed Corporation (e.e. CC)	**Founding Statement – CK 1 Form**	
	Amended Founding Statement – CK 2 Form, if applicable	
	Letter of consent or approval to gambling activities on the premises from all members of close corporation, duly signed & dated	
	Board or similar resolution authorising the appointment of signatory to sign & execute documents on behalf of the primary business	
A Sports Club	**Constitution or Charter**	
	Letter of consent or approval to gambling activities on the premises from Executive Committee Members, duly signed & dated	

A Partnership or Association	**Partnership Agreement or Association Agreement**	
	Letter of Consent or approval to gambling activities on the premises from the partners or associates, duly signed & dated	
	Board or similar resolution authorising the appointment of signatory to sign & execute documents on behalf of the primary business	
A Trust	**Trust Deed**	
	Letter of consent or approval to gambling activities on the premises from the trustees, duly signed & dated	
	Letter of Authority from the Master of the High Court	
	Board or similar resolution authorising the appointment of signatory to sign & execute documents on behalf of the primary business	
A group of individuals (e.g. shareholders)	**Shareholder's Agreement**	
	Letter of consent or approval to gambling activities on the premises from the shareholders, duly signed & dated	
	Funding Consortium Agreement, if applicable	
	Board or similar resolution authorising the appointment of signatory to sign & execute documents on behalf of the primary business	
Documentation required if primary business is rented or leased:		
Letter of consent or approval for conduct of gambling activities on the premises, duly signed & dated **by the relevant landlord, lawful owner or managing agent of the property or land**		
Copy of Rental or Lease Agreement, duly signed & dated **between legal occupier and owner of the primary business**		
Copy of Addendum or Lease Agreement, duly signed & dated in instances where HYPOTHEC OR LIEN **exists over the property**		
BUSINESS LICENSING DETAILS		
Copy of liquor licence/permit and conditions of primary business		
Copy of liquor licence renewal advice receipt		
Copies of all licences & conditions granted by other gaming jurisdictions, if applicable		
Copy of business licence from relevant local authority		
Written confirmation that there are no existing title deed restrictions relating to the use of the premises for gamlbing operations		
Written confirmation by the relevant local authority that the premises is appropriately zoned for the conduct of gambling operations		
Letter of consent or approval from the relevant local authority where 2 or fewer LPMs exposed for play on the premises, if applicable		
Proof of ownership of property or land of primary business		
ORGANISATIONAL DETAILS		
Organogram of shareholding / representation of ownership in primary business		
Organogram of staff structure in primary business		
FINANCIAL & TAXATION DETAILS		
Copies of statements of all bank accounts **for the past 3 moths**		
Copies of management accounts of primary business for past 3 years		
Copies of income tax assessments of the primary business for the past 3 years		
Valid tax clearance certificate		
Copy of letter of extension granted by SARS, if applicable		
Copies of VAT Remittance statements for the past 6 months		
Copy of current statement of account for PAYE , if applicable		
Copy of current statement of a account WCA, if applicable		
Copy of current statement of account for RSC Levies, if applicable		
Copy of current statement of account for UIF, if applicable		
Copy of current statement of account for SDL, if applicable		

GENERAL DETAILS	ATTACHED/NOT
Application form completed in its entirety in compliance with the RFP requirements	
All supporting documentation, schedules, annexures and attachments enclosed	
Affidavit, Company release authorisation duly signed and dated	
Authorised signature of applicant on all pages **of application form**	
Board Resolution authorising the signatory to sign & execute all documentation enclosed, if applicable	
Clearly marked floor layout of the premises	
SECTION B	
PERSONAL DETAILS (PHD)	
Certified copy of identity document or passport, if applicable	
Police clearance from the SAPS or its authorised agent	
2 x passport size colour photograph	
Spouses Affidavit enclosed, if married in community of property	
Copies of Trust Deeds, if applicable	
Certified copies of all tertiary qualifications, if applicable	
Copy of employment certificate from current employer	
Certified copy of rescission / garnishing / administration order, if applicable	
Certified copy of pardon or expunction order, if applicable	
FINANCIAL STATEMENTS	
Copies of Trust Deeds, financial statements for the past 3 years and bank statements for past 3 months of local trusts, if applicable	
Copies of Trust Deeds, financial statements for the past 3 years and bank statements for past 3 months of foreign trusts, if applicable	
Copies of statements of all bank accounts **for past 3 months**	
Statement of assets and liabilities	
TAXATION DETAILS	
Copies of income tax assessments for Trust, if applicable	
Copies of income tax assessments for the past 3 years	
Valid tax clearance certificate	
GENERAL DETAILS	
Application form completed in its entirety in compliance with the RFP requirements	
All supporting documentation, schedules, annexures and attachments	
Affidavit (of applicant), Affidavit (of spouse), Personal release authorisation and photographs duly signed and dated	
Authorised signature of applicant on all pages **of application form**	
QUALITY CONTROLS BY OPERATOR	

The contents of and information contained in this application form have been assessed, evaluated and deemed to be of a satisfactory ad an acceptable standard for submission to the Gauteng Gambling Board.		FOR OFFICE USE ONLY	FOR OFFICE USE ONLY
The application form has been scrutinised for all supporting documentation, annexures, schedules and attachments, as required in the application form and are deemed to be of a satisfactory and an acceptable standard for submission to the Gauteng Gambling Board		**Information contained on checklist is** correct & has been verified	
TO BE COMPLETED BY THE OPERATOR *(*Failure to complete this Section of the checklist will result in the application form being returned* Details of designated person responsible for assessment & evaluation of this application form Name of Person: _____ (PRINT IN BLOCK LETTERS) Designated Position: _____ Department: _____ Signature: _____ Date of Assessment & Evaluation of this file: _____		**Information contained on checklist is** incorrect & cannot be verified	